National Aeronautics and Space Administration

Goddard Space Flight Center
Greenbelt, MD 20771

December 16, 2025

TO: All Potential Offerors

SUBJECT: Request for Proposal (RFP), Solicitation No. 80HQTR26R0002, for NASA Research and Education Support Services (NRESS) III

You are invited to submit a proposal in response to the National Aeronautics and Space Administration (NASA) Headquarters' (HQs) NASA Research and Education Support Services (NRESS) III solicitation. The principal purpose of this requirement is to provide professional support services and information technology support and related services for the NRESS Program to support the agency's peer review program. The requirements for this effort will support meeting the objectives of NASA HQs and other Centers with research, education, and outreach initiatives that provide opportunities for participating in NASA's research programs to education institutions, businesses, and individuals. Services include support of activities ancillary to soliciting research proposals, such as workshops that are convened to plan long-range research objectives and to review and evaluate ongoing Enterprise research programs to determine their effectiveness and relevance to NASA's mission. Services will also include sustainment of system compliance with federal and NASA IT policies, new system architecture development and database management and enhancements to an end-to-end web-based electronic system that supports the submission, evaluation, and selection of research proposals.

NASA will conduct this acquisition as an 8(a) set-aside competition. The North American Industry Classification System (NAICS) code for this acquisition is 541611, Administrative Management and General Management Consulting Services and the small business size standard is $24.5M.

This competitive acquisition will result in a Cost-Plus-Fixed Fee (CPFF), Indefinite Delivery Indefinite Quantity (IDIQ) contract, with the ability to issue CPFF task orders. The contract will have an effective ordering period of 5 years from the contract effective date.

The anticipated contract award date is 10/01/2026, with a 12/01/2026 contract effective date. The contract will be performed offsite at the Contractor's facilities.

Potential offerors should pay close attention to all solicitation instructions; however, the following requirements list is summarized to assist in proposal development. Please note that this list is not exhaustive, and the solicitation terms and conditions and provisions in sections L and M take precedence:

1. A Phase-in period will be conducted. A 60-day Phase-in Period will be awarded under a separate Firm Fixed Price (FFP) purchase order.

2. The Government will make available Government Furnished Property (GFP) for offsite use at the Contractor's facility as described in the RFP.

3. NASA has determined that this acquisition may give rise to a potential organizational conflict of interest (OCI). Offerors should refer to clause H.2 1852.209-71 Limitation of Future Contracting, for a description of the potential conflict(s) and any restrictions on future contracting. Offerors should refer to NASA clause 1852.237-72, Access to Sensitive Information, which references the OCI plan as a contract compliance document.

4. NASA HQs appreciates the comments received in response to the release of the Draft RFP. These comments resulted in improvements to the quality and content of the overall RFP. Offerors should review the RFP in its entirety, as its content has changed from the Draft RFP version. The following list identifies some areas where significant changes or clarifications have been made from the Draft RFP to this final RFP that may not have been addressed in the Draft RFP questions and responses:

   - The requirement for the Offeror to submit a Total Compensation Plan is outlined in Section L, with corresponding evaluation criteria provided in Section M. Removed all references to NFS 1852.231-71 in accordance with PCD 23-02.

   - RTOs 1 through 3 were updated for clarity and to better align with the overall objectives and evaluation criteria of the solicitation.

   - Enclosure 3 - GPM has been updated to clarify labor categories and their corresponding descriptions.

   - Attachment E - Applicable Documents List was removed in its entirety. All subsequent attachments have been renumbered accordingly.

   This list is not intended to cover all changes nor describe all RFP requirements. Offerors should carefully review the RFP in its entirety.

5. Be advised, in accordance with provision GSFC 52.215-230, offerors need to encourage their references to submit their Past Performance Questionnaires directly to the Contracting Officer prior to proposal due date.

6. Offerors are required to have a Commercial and Government Entity (CAGE) code that matches the corporate address submitted with its proposal.

7. The eLibrary documents are accessible through the SAM.gov announcement.

8. System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Offerors are encouraged to refer to Federal Acquisition Regulation (FAR) provision 52.215-1, INSTRUCTIONS TO OFFERORS–COMPETITIVE ACQUISITION, in particular paragraph (f)(4) which discusses the Government's right to award a contract without discussions.

In order to control and protect sensitive data owned by the Government and its Contractors, NASA policy required all acquisition-related documents be released in Adobe Portable Document Format (PDF). The Offeror's Cost Volume proposal shall include completed Cost Volume exhibits in Microsoft Office Excel format with working cell formulas.

Documents related to this acquisition, including this letter, the solicitation, attachments, exhibits, any amendments and links to online reference/technical/bidders library will be attainable electronically from the World Wide Web through the Government-wide point of entry website at www.SAM.gov. Potential offerors are requested to periodically monitor the websites for updates.

NASA FAR Supplement (NFS) clause 1852.215-84, Ombudsman, is applicable. The Center Ombudsman for this acquisition can be found at https://www.hq.nasa.gov/office/procurement/regs/Procurement-Ombuds-Comp-Advocate-Listing.pdf

This RFP does not commit NASA HQs to pay any proposal preparation costs, nor does it obligate NASA HQs to procure or contract for these services. This request is not an authorization to proceed and does not authorize payment for any charges incurred by the offeror for performing any of the work called for in this solicitation.

Proposals submitted in response to this solicitation shall be due no later than 3:00 p.m. EST on January 30, 2026. Proposals for this solicitation are required to be submitted through NASA's Enterprise File Sharing and Sync Box (EFSS Box), a FedRAMP Moderate certified platform. Potential offerors, especially those that have not previously submitted a proposal utilizing NASA's EFSS Box, are encouraged to review the solicitation instruction entitled "Electronic Proposal Delivery - Proposal Marking and Delivery Through NASA's EFSS Box" which provides instructions related to the submission of proposal via EFSS Box. Offerors are encouraged to check with their corporate IT staff to determine if there are firewall restrictions that would need to be addressed prior to the submission of proposal files through NASA's EFSS Box.

In accordance with NFS 1815.201(f), a “Blackout Notice” has been issued to NASA personnel. All inquiries/communications pertaining to this acquisition shall be directed only to the Contracting Officer listed below.

All questions regarding this RFP should be submitted in writing, electronically to Chanda Cannon, Contracting Officer, at Chanda.M.Cannon@nasa.gov on or before 12:00 p.m. EST on January 12, 2026. Offerors are encouraged to submit questions as soon as possible for consideration.

Thank you for your support. We look forward to receiving your proposals.

_____

Chanda Cannon
Contracting Officer

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

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2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	80HQTR26R0002	☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL		SEE SCHEDULE

7. ISSUED BY CODE 80HQTR
NASA HEADQUARTERS
Headquarters Procurement Office - 8800 Greenbelt Road
GREENBELT, MD 20771
United States

8. ADDRESS OFFER TO *(If other than item 7)*

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until 12:00 PM ET *(Hour)* local time 1/30/2026 *(Date)*

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE *(NO COLLECT CALLS)*			C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION	
	Cannon, Chanda M. (GSFC-1730)				chanda.m.cannon@nasa.gov

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OFFER *(Must be fully completed by offeror)*

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days *(60 calendar days unless a different period is inserted by the offeror)* from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT *(See Section I, Clause Number 52.232-8)*	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)

14. ACKNOWLEDGMENT OF AMENDMENTS *(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):*	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE

15A. NAME AND ADDRESS OF OFFEROR — CODE _____ FACILITY _____

16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*

15B. TELEPHONE NUMBER			☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION			

AWARD *(To be completed by Government)*

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION

22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:
☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ( )

23. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* — ITEM

24. ADMINISTERED BY *(If other than Item 7)*

25. PAYMENT WILL BE MADE BY — CODE 1

26. NAME OF CONTRACTING OFFICER *(Type or print)*
Chanda Cannon

27. UNITED STATES OF AMERICA *(Signature of Contracting Officer)*

28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

SECTION B – SUPPLIES OR SERVICES AND PRICES/COST

B.1 GSFC 52.211-90 SUPPLIES AND/OR SERVICES TO BE PROVIDED. (APR 2025)

The Contractor shall provide all resources (except as may be expressly stated in the contract as furnished by the Government) necessary to deliver and/or perform the items below in accordance with the Statement of Work (SOW), incorporated as Attachment A, and Task Orders issued hereunder.

Item	Description	Reference	Schedule	Delivery Method/Addresses
1	Services and Deliverables in accordance with Attachment A, SOW	As Defined in Attachment A, SOW	As Defined in Attachment A, SOW	As Defined in Attachment A, SOW
2	Services and Deliverables in accordance with Task Orders Issued and the SOW	As Defined in Individual Task Orders Issued	As Specified in Individual Task Orders Issued	As Specified in Individual Task Orders Issued
3	Task Plans	Section B GSFC 52.216-91 Section I NFS 1852.216-80	As Required in Clause NFS 1852.216-80	As Required in Clause NFS 1852.216-80
4	Reports of Work	Section C GSFC 52.235-90 Section H NFS 1852.235-73	As Required in Clause GSFC 52.235-90	Electronic Format/ Contracting Officer (CO), Contracting Officer's Representative (COR),
5	Contract Historical Data	Section C GSFC 52.211-91 Attachment G	30 Days after Contracting Officer Request	Electronic Format/CO
6	NASA Financial Management Reports	Section G GSFC 52.242-90 Section G NFS 1852.242-73 Attachment C	Monthly and quarterly in accordance with Attachment C	Electronic Format/ CO, COR, & Regional Finance Office
7	Foreign Travel Requests and Foreign Travel Reports	Section G NFS 1852.242-71	Foreign Travel Requests–30 days in Advance of Travel Foreign Travel Reports–Due within 10 business days of the completion of travel.	As specified in CO's travel approval
8	Requests for Government Property	Section G NFS 1852.245-70	30 Days Prior to Acquire Date	Electronic Format/CO

9	Physical Inventory of Capital Personal Property Reporting	Section G NFS 1852.245-78	Within 10 Days of Annual Physical Inventory	Property Administrator
10	Reporting of Inventions	Section G NFS 1852.227-72 Section I FAR 52.227-11	Interim Reports Every 12 Months (or sooner to preserve Patent Rights) and Final Report within 3 Months after Contract Completion	Electronic or Hard Copy Format/New Technology Representative or Patent Representative
11	Safety & Health Reporting	Section H NFS 1852.223-70 Section H NFS 1852.223-75 Section H GSFC 52.223-91	Monthly/Quarterly Reports and As Required	NASA Mishap Information System (NMIS)
12	Personal Identity Verification (PIV) Documentation and Reporting	Section H GSFC 52.204-99 HQ 52.204-98	10th Day of the Month and As Required	Electronic Format and Hard Copy/COR & Code 240 OR HQ Security Office
13	Organizational Conflicts of Interest (OCI) Avoidance Plan	Section I NFS 1852.237-72 Section J Attachment H	30 Days after Contract Effective Date	Electronic Format/CO
14	Certificate of Insurance	Section I FAR 52.228-5 FAR 52.228-7 Section I NFS 1852.228-75	As Specified by FAR52.228-5 FAR 52.228-7	Electronic Format/CO
15	Subcontract Notification	Section I FAR 52.244-2	30 Days Prior to Subcontract Award Date	Electronic or Hard Copy Format/CO
16	Security Requirements for Unclassified IT Resources a. Information System Security Plan b. Contractor's IT Security POC c. NASA Cybersecurity and Privacy Awareness Training d. IT Security Role Based Training	Section I NFS 1852.240-76 Deviation 25-22, Section J Security Requirements for Unclassified IT Resources DRD, Attachment I	a. At start of phase-in, updated as required. b. At start of phase-in, updated as required. c. Prior to access to NASA information and systems d. Initial evidence at end of phase-in, updated annually on anniversary	Electronically to CO, COR, and NASA Security Officer (ISSO) or NASA Information Owner

	e. Non-Federal System Certification f. Info on Employees in Sensitive Positions/Assignments Report		date of initial training. e. Prior to any transfer of NASA non-public information to the contractor, submitted annually. f. At start of phase-in, submitted annually.	
17	Cyber Supply Chain Risk Management (C-SCRM) Plan	Section I NFS 1852.240-76 Deviation 25-22 IT DRD, Section J Attachment K	Prior to any transfer of NASA non-public information to the contractor, updated as required. As specified by 1852.240-76 (Deviation 25-22) and Attachment K	ICT/C-SCRM Service Element Lead
18	Service Contract Reporting	Section I FAR 52.204-14 FAR 52.204-15	Annually by October 31 and Revisions, if needed, by November 30	https://www.sam.gov

NOTE: Unless otherwise specified, “day” means “calendar day”.

(End of Clause)

B.2 GSFC 52.216-90 MINIMUM/MAXIMUM AMOUNT OF SUPPLIES OR SERVICES (COST REIMBURSEMENT). (MAR 2022)

(a) The minimum amount of supplies or services that shall be ordered during the effective period of this contract is **$2,000,000.00.** The maximum amount of supplies or services that may be ordered during the effective period of this contract is **$365,000,000.00.** All orders placed under this contract will be applied to the minimum and maximum specified in this paragraph.
(b) The minimum amount is reached when the sum of the dollar amounts of all ordered supplies or services, except for any adjustments made pursuant to the Limitation of Cost or Limitation of Funds clause, equals or exceeds the minimum amount stated in paragraph (a).
(c) The maximum amount is reached when the sum of the dollar amounts of all ordered supplies or services, except for any adjustments made pursuant to the Limitation of Cost or Limitation of Funds clause, equals the maximum amount stated in paragraph (a).

(d) The maximum amount, if reached, precludes the issuance of further orders for supplies or services under this contract. However, reaching the maximum amount does not preclude adjustments to the dollar amounts of existing placed orders, for actions that are within the scope of the placed orders, and which are made pursuant to existing contract authority, such as the Changes clause.

(End of clause)

B.3 GSFC 52.216-91 SUPPLEMENTAL TASK ORDERING PROCEDURES (COST REIMBURSEMENT). (APR 2022)

(a) When the Government issues a request for a "task plan" to the Contractor in accordance with the Clause entitled "Task Ordering Procedure" of this contract, the Contractor shall prepare its estimate of the labor hours, labor categories, indirect costs, and other direct costs required to perform the task order requirements. The Contractor shall use only those appropriate labor and indirect cost rates, which may be less than but shall not exceed the rates found in **Attachment B**, to calculate the proposed estimated costs for all task orders issued in accordance with the "Task Ordering Procedure" clause of this contract.
(b) The Contractor's proposed approach/pricing of the representative tasks set forth in its proposal for award of this contract shall be used as reference by the Contracting Officer in negotiating tasks with the Contractor which are issued under this contract, but only to the extent portions of a representative task are relevant to portions of a task actually issued.
(c) The Government and Contractor agree that the fixed fee percentage specified in **Attachment B** shall be used to calculate the fixed fee dollars on all task orders issued in accordance with the "Task Ordering Procedure" clause of this contract.

(End of clause)

B.4 GSFC 52.232-94 ESTIMATED COST INCREASES. (DEC 2005)

(a) The Contractor shall notify the Contracting Officer in writing when the Contractor has reason to believe that the total cost for performance of this contract, or any individual task order, exclusive of any fee, will be either greater or substantially less than the total estimated cost stated in this contract or in the task order. Notification shall not be delayed pending preparation of a proposal.
(b) A proposal is required to support a request for an increase in the estimated cost of the contract or the task order. The proposal should be submitted as soon as possible after the above notification but no later than 115 days before the incurred costs are expected to exceed the estimated cost. This will allow adequate time for the Government to evaluate the proposal and to mutually establish any increase in estimated cost with the Contractor.
(c) (1) The proposal shall be submitted in the following format unless some other format is directed or approved by the Contracting Officer:
Incurred costs to date
Projected cost to completion
Total cost at completion

Current negotiated estimated cost
Requested increase in estimated cost

(2) The "projected cost to completion" shall consist of the following "other than cost or pricing data" unless the Contracting Officer requests or approves the submittal of a greater or lesser amount of information:

(i) Elements of cost with supporting detail for estimated direct labor hours, direct and indirect rates, materials and subcontracts, and other elements.

(ii) Supporting explanation for the increases and projections, sufficient for the Government to understand the reasons for the increased estimated cost.

(End of clause)

B.5 NFS 1852.216-74 ESTIMATED COST AND FIXED FEE. (DEC 1991)

The estimated cost of this contract is **to be negotiated by task order** exclusive of the fixed fee of **to be negotiated by task order**. The total estimated cost and fixed fee is **to be negotiated by task order and not to exceed the maximum ordering value specified in clause B.2.**

(End of clause)

B.6 NFS 1852.232-81 CONTRACT FUNDING. (JUN 1990)

(a) For purposes of payment of cost, exclusive of fee, in accordance with the Limitation of Funds clause, the total amount allotted by the Government to this contract is **identified on each task order**. This allotment is for NASA Research and Education Support Services (NRESS) III and covers the following estimated period of performance: **Identified on each task order**.

(b) An additional amount, **identified on each task order**, is obligated under this contract for payment of fee.

(End of clause)

PART I – THE SCHEDULE
SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C.1 GSFC 52.211-91 SCOPE OF WORK. (FEB 2016)

The Contractor shall provide the personnel, materials, and facilities, except as otherwise specified in this contract, necessary to perform the work and to furnish the items specified in the Supplies and/or Services To Be Provided clause of this contract in accordance with the **Attachment A - Statement of Work; Attachment G - Contract Historical Data**, **Attachment L - Requirements Statements List and Task Orders issued hereunder.**

(End of clause)

C.2 GSFC 52.235-90 REPORTS OF WORK (IDIQ/BPA). (MAR 2022)

(a) Monthly progress reports. The Contractor shall submit monthly progress reports of all work accomplished covering all Task Orders active during each month of contract performance. Reports shall address the accomplishments and progress of all work performed under each Task Order for the month being reported. Each Task Order shall be a separate report. The report shall be in narrative form and brief in content. The report shall include a description of overall Task Order progress to include technical accomplishments and status of deliverables. Also the report shall provide a quantitative description of overall progress and identify any risks or problems, which may impede performance and proposed corrective actions. Also the report shall have a discussion of the projected work activities to be performed during the next monthly reporting period.
(b) Final Task Order Report. The Contractor shall submit a Final Task Order Report for each completed Task Order that summarizes the results of the entire Task Order, including recommendations and conclusions based on the experience and results obtained. The Final Task Order Report should include, as appropriate, tables, graphs, diagrams, curves, sketches, photographs, and drawings in sufficient detail to comprehensively explain the results achieved under the Task Order. The final report shall also include the final incurred cost for the Task Order.
(c) Submission. The Contractor shall submit the reports required by this clause as follows:

Copies	Report Type	Addressee	Mail Code
1	M, F	Contracting Officer (CO)	173
1	M, F	Contracting Officer's Representative (COR)	DA030

[M=Monthly Report, F=Final Report]

(d) Submission dates. Monthly reports shall be submitted by the 15th day of the month following the month being reported. If the Task Order is awarded beyond the middle of a month, the first monthly report shall cover the period from award until the end of the following month. The final report for each Task Order shall be submitted within 30 days after completion of the Task Order

(End of clause)

SECTION D - PACKAGING AND MARKING

D.1 SECTION D CLAUSES INCORPORATED BY REFERENCE

NFS 1852.211-70 PACKAGING, HANDLING, AND TRANSPORTATION. (SEP 2005)

(End of by reference clauses)

D.2 NFS 1852.245-74 IDENTIFICATION AND MARKING OF GOVERNMENT EQUIPMENT. (JAN 2011)

(a) The Contractor shall identify all equipment to be delivered to the Government using NASA Technical Handbook (NASA-HDBK) 6003, Application of Data Matrix Identification Symbols to Aerospace Parts Using Direct Part Marking Methods/Techniques, and NASA Standard (NASA-STD) 6002, Applying Data Matrix Identification Symbols on Aerospace Parts or through the use of commercial marking techniques that: (1) are sufficiently durable to remain intact through the typical lifespan of the property: and, (2) contain the data and data format required by the standards. This requirement includes deliverable equipment listed in the schedule and other equipment when no longer required for contract performance and NASA directs physical transfer to NASA or a third party. The Contractor shall identify property in both machine and human readable form unless the use of a machine readable-only format is approved by the NASA Industrial Property Officer.

(b) Equipment shall be marked in a location that will be human readable, without disassembly or movement of the equipment, when the items are placed in service unless such placement would have a deleterious effect on safety or on the item's operation.

(c) Concurrent with equipment delivery or transfer, the Contractor shall provide the following data in an electronic spreadsheet format:

(1) Item Description.
(2) Unique Identification Number (License Tag).
(3) Unit Price.
(4) An explanation of the data used to make the unique identification number.

(d) For equipment no longer needed for contract performance and physically transferred under paragraph (a) of this clause, the following additional data is required:

(1) Date originally placed in service.
(2) Item condition.

(e) The data required in paragraphs (c) and (d) of this clause shall be delivered to the NASA center receiving activity listed below:

NASA Headquarters
300 E St SW
Washington DC 20546

(f) The contractor shall include the substance of this clause, including this paragraph (f), in all subcontracts that require delivery of equipment.

(End of clause)

SECTION E - INSPECTION AND ACCEPTANCE

E.1 CLAUSES INCORPORATED BY REFERENCE

FAR 52.246-5 INSPECTION OF SERVICES - COST-REIMBURSEMENT. (APR 1984)

(End of by reference clauses)

E.2 GSFC 52.246-92 ACCEPTANCE -- SERVICES. (APR 2022)

The Contracting Officer or authorized representative will accomplish acceptance at the **NASA Headquarters facility** or as specified in individual task orders issued. For the purpose of this clause, the Contracting Officer's Representative delegated on this contract is the authorized representative. The Contracting Officer reserves the right to unilaterally designate a different Government agent as the authorized representative. The Contractor will be notified by a written notice or by a copy of the delegation of authority if different representative is designated.

(End of clause)

E.3 GSFC 52.246-102 INSPECTION SYSTEM RECORDS. (APR 2013)

The Contractor shall maintain records evidencing inspections in accordance with the Inspection clause of this contract for six (6) years after delivery of all items and/or completion of all services called for by the contract.

(End of clause)

SECTION F - DELIVERIES OR PERFORMANCE

F.1 CLAUSES INCORPORATED BY REFERENCE

FAR 52.242-15 STOP-WORK ORDER. (AUG 1989) ALTERNATE I (APR 1984)

(End of by reference clauses)

F.2 GSFC 52.217-92 EFFECTIVE ORDERING PERIOD (JAN 2014)

The effective ordering period of this contract shall be for a period of 5 years from the contract effective date of **12/01/2026**.

(End of clause)

F.3 GSFC 52.237-92 PLACE OF PERFORMANCE - SERVICES. (NOV 2013)

The services to be performed under this contact shall be performed at the following location(s): **Contractor's facilities**. Alternate places of performance may be specified in individual task orders issued.

(End of clause)

SECTION F – DELIVERIES OR PERFORMANCE

G.1 CLAUSES INCORPORATED BY REFERENCE

NFS 1852.216-75	PAYMENT OF FIXED FEE. (DEC 1988)
NFS 1852.227-72	DESIGNATION OF NEW TECHNOLOGY REPRESENTATIVE AND PATENT REPRESENTATIVE. (APR 2015)
NFS 1852.242-71	TRAVEL OUTSIDE OF THE UNITED STATES (DEC 1988)
NFS 1852.242-73	NASA CONTRACTOR FINANCIAL MANAGEMENT REPORTING. (NOV 2004)
NFS 1852.245-70	CONTRACTOR REQUESTS FOR GOVERNMENT-FURNISHED PROPERTY. (AUG 2015)
NFS 1852.245-75	PROPERTY MANAGEMENT CHANGES. (JAN 2011)
NFS 1852.245-78	PHYSICAL INVENTORY OF CAPITAL PERSONAL PROPERTY. (AUG 2015)

(End of by reference clauses)

G.2 NFS 1852.232-80 SUBMISSION OF VOUCHERS FOR PAYMENT. (APR 2018)

(a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.
(b) Except for classified vouchers, the Contractor shall submit all vouchers and invoices using the steps described at NSSC's Vendor Payment information Web site at: https://www.nssc.nasa.gov/vendorpayment. Please contact the NSSC Customer Contact Center at 1-877-NSSC123 (1-877-677-2123) with any additional questions or comments.
(c) *Payment requests.*

(1) The payment periods are stipulated in the payment clause(s) contained in this contract.

(2) Vouchers submitted under cost type contracts and invoices submitted under fixed-price contracts shall include the items delineated in FAR 32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:

(i) *Vouchers.*

(A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.

(B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs.

(C) Indirect rate(s) used to calculate the amount of billed indirect expenses.

(D) Progress reports, as required.

(ii) *Invoices.*

(A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.

(B) Progress reports, as required.

(C) Date goods and services were performed.

(iii) *Fee vouchers.*

(A) Listing of all provisionally-billed fee by period or date earned since contract award.

(B) A reconciliation of all billed and earned fee.

(C) A clear explanation of the fee calculations.

(d) *Non-electronic payment requests.* The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at *https://www.nssc.nasa.gov/vendorpayment,* when any of the following conditions are met:

(1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.

(2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.

(e) Improper vouchers/invoices. The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoice within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in paragraph (b) of this section.

(f) *Other payment clauses.* In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

G.3 NFS 1852.245-76 LIST OF GOVERNMENT PROPERTY FURNISHED PURSUANT TO FAR 52.245–1. (JAN 2011)

For performance of work under this contract, the Government will make available Government property identified below or in **Attachment D** of this contract on a no charge-for-use basis pursuant to the clause at FAR 52.245–1, Government Property, as incorporated in this contract. The Contractor shall use this property in the performance of this contract at the **Contractor's facilities** and at other location(s) as may be approved by the Contracting Officer. Under FAR 52.245–1, the Contractor is accountable for the identified property.

(End of clause)

G.4 GSFC 52.216-100 INDIVIDUALS AUTHORIZED TO ISSUE ORDERS. (MAR 2022)

The following personnel are authorized to issue orders under this contract. All designated personnel are employed by the NASA Goddard Space Flight Center unless otherwise indicated:
Contracting Officer, Code 173

(End of clause)

G.5 GSFC 52.242-90 FINANCIAL MANAGEMENT REPORTING. (JUN 2014)

(a) Requirements. This clause provides the supplemental instructions referred to in NASA FAR Supplement (NFS) clause 1852.242-73. The NFS clause and NASA Procedural Requirements (NPR) 9501.2E, "NASA Contractor Financial Management Reporting", establish report due dates and other financial management reporting requirements. NPR 9501.2E permits withholding of payment for noncompliance.
(b) Supplemental instructions. (1) Monthly (NF 533M) reports are required. Quarterly (NF 533Q) reports **are also** required. The reporting structure shall be in accordance with **Attachment C** of Section J of this contract.
(2) As stated in NPR 9501.2E, NASA strongly encourages electronic contractor cost reporting. The preferred formats are Excel and Adobe. Contact the Contracting Officer for any E-Mail addresses that are not provided or which become noncurrent.
Distribution shall be as follows:
Contracting Officer, GSFC-1730
E-Mail: Chanda.M.Cannon@nasa.gov
Contracting Officer's Representative, GSFC-5430
E-Mail: sara.m.riall@nasa.gov
Regional Finance Office Cost Team, Code 155.2
E-Mail: GSFC-rfocateam@lists.nasa.gov
Administrative Contracting Officer (if delegated)
(c) Web site. NPR 9501.2E, "NASA Contractor Financial Management Reporting":
http://nodis3.gsfc.nasa.gov/displayDir.cfm?t=NPR&c=9501&s=2E

(End of clause)

G.6 GSFC 52.245-96 PROPERTY CLAUSE APPLICABILITY - OFF-SITE. (APR 2016)

(a) Performance of this contract requires that Contractor personnel and any furnished and/or acquired Government property at Contractor controlled and managed premises (offsite). The requirements for control and accountability of Government property differ depending upon the location of the property. The applicability of the clauses in this contract to off-site locations is indicated below.
(b) Clauses, if included in the contract, are applicable to both onsite and offsite locations.
FAR clause 52.245-1, "Government Property"
FAR clause 52.245-9, "Use and Charges"
NASA FAR Supplement clause 1852.245-70, "Contractor Requests for Government-Provided Property"
NASA FAR Supplement clause 1852.245-72, "Liability for Government Property Furnished for Repair or Other Services"
NASA FAR Supplement clause 1852.245-73, "Financial Reporting of NASA Property in the Custody of Contractors"

NASA FAR Supplement clause 1852.245-74, "Identification and Marking of Government Equipment"
NASA FAR Supplement clause1852.245-75, "Property Management Changes"
NASA FAR Supplement clause 1852.245-78, "Physical Inventory of Capital Personal Property"
NASA FAR Supplement clause 1852.245-79, "Records and Disposition Reports for Government Property with Potential Historic or Significant Real Value"
NASA FAR Supplement clause 1852.245-83, "Real Property Management Requirements"
GSFC clause 52.245-99, "Supplemental Financial Reporting of NASA Property in the Custody of Contractors"
(c) Clauses, if included in the contract, are applicable to offsite locations only.
NASA FAR Supplement clause 1852.245-76, "List of Government Property Furnished Pursuant to FAR 52.245-1"

(End of clause)

G.7 GSFC 52.245-99 SUPPLEMENTAL FINANCIAL REPORTING OF NASA PROPERTY IN THE CUSTODY OF CONTRACTORS (JUN 2019)

(a) In addition to the annual 1018 reporting required under clause NFS 1852.245-73 of this contract, the Contractor shall submit monthly property financial reports as described below if, at either award or any time during contract performance, the cumulative amount of NASA property is $10 million or more.
(1) Monthly property financial reports shall be submitted including item-level supporting data for all items acquired/fabricated/modified where the total acquisition cost of the item is $500,000 or more, in the contractor's or its subcontractors' possession. This data shall be submitted for all items in the property classifications of real property, equipment, special test equipment, special tooling, and agency peculiar property.
(2) Monthly data shall also be submitted for items of any acquisition cost in the classifications of materials and contract work-in-process (WIP). Specifically, itemized monthly data is required for materials and WIP line items when the estimated total acquisition cost of any item at completion will be $500,000 or more.
(b) The monthly reports shall be electronically submitted using the Contractor-Held Asset Tracking System (CHATS) at https://chats.nasa.gov using the format described in the CHATS user's manual.
(c) Acquisition costs shall be developed using actual costs to the greatest extent possible, especially costs directly related to fabrication such as labor and materials. Supporting documentation shall be maintained and available for all amounts reported, including any amounts developed using estimating techniques.
(d) All adjustments shall be thoroughly explained and directly related to a specific Government Fiscal Year (GFY). If the GFY cannot be determined, the default shall be the previous GFY.
(e) Work Breakdown Structures (WBS) shall be provided for all Contractor acquired property (CAP), WIP, and any new materials acquired. The format shall be a five digit numerical level. (i.e., 803-10). If the WBS is not identifiable, contact the NASA GSFC Property Office for further guidance, as provided in paragraph (f)(4) below.

(f)(1) The data required for the monthly submission is due the 21st day after the close of the month.
e.g., August 21 for the month ending July 31
September 21 for the month ending August 31
October 21 for the month ending September 30
(2) The monthly property financial reports required by this clause are separate from, and in addition to the annual NF 1018 reports.
(3) Both the NF 1018 report data and the September monthly report data are as of September 30. Corrections in monthly report data shall be handled as adjustments in the next monthly report after discovery of the error. (e.g., Errors in the September monthly report shall be reported as adjustments in the October monthly report. The NF 1018 shall reflect the corrected numbers and the contractor shall provide a note regarding the corrected monthly report error under Comments in the NF 1018.) Errors in the NF1018 found after the November 30 submission shall be reported as adjustments in the NF 1018 for the next reporting year, unless immediate correction and resubmission are directed by NASA.
(4) Questions may be directed to the following individuals of the NASA GSFC Property Office:
Angela King, (301) 286-3543, email angela.c.king@nasa.gov
Timothy Kelly (301) 286-8819, email: timothy.e.kelly@nasa.gov

(End of clause)

SECTION F – DELIVERIES OR PERFORMANCE

H.1 CLAUSES INCORPORATED BY REFERENCE

NFS 1852.208-81 RESTRICTIONS ON PRINTING AND DUPLICATING. (NOV 2004)
NFS 1852.223-75 MAJOR BREACH OF SAFETY OR SECURITY. (FEB 2002)

(End of by reference clauses)

H.2 NFS 1852.209-71 LIMITATION OF FUTURE CONTRACTING. (DEC 1988)

(a) The Contracting Officer has determined that this acquisition may give rise to a potential organizational conflict of interest. Accordingly, the attention of prospective offerors is invited to FAR Subpart 9.5 - Organizational Conflicts of Interest.

(b) The nature of these conflicts are that in performing this contract, there are situations where the services performed may give rise to the significant potential organizational conflicts of interest listed below.

(1) There is a concern that the successful contractor or its subcontractor(s), as part of their performance of a government contract, obtains access to another contractor's proprietary, business confidential, or financial data and/or non-public Government information, which may provide the firm an unfair competitive advantage in a future competition. The Contractor shall protect this data/information from unauthorized use and disclosure and agrees not to use it, either directly or indirectly, in any proposals responding to a future Government solicitation.
(2) There is a concern that the successful contractor or its subcontractor(s) judgment and objectivity in performing their contract requirements may be impaired due to the fact that the substance of the contractor's performance has the potential to affect other interests of the contractor, thereby impairing the contractor's judgment and objectivity.

(c) The restrictions upon future contracting are as follows:

(1) To the extent that the work under this contract requires access to proprietary, business confidential, or financial data of other companies, and as long as this data remain proprietary or confidential, the Contractor and its subcontractors shall protect this data from unauthorized use and disclosure and agree not to use this data, either directly or indirectly, in any proposals responding to a future Government solicitation. Similarly, the Contractor and its subcontractors shall protect Government non-public information from unauthorized use and disclosure and agree not to use it, either directly or indirectly, in any proposals responding to a future Government solicitation. If the Contractor and/or its subcontractor are unable to demonstrate adequate protection to ensure that non- public data/information could not be used to improve their competitive position in a future procurement, they will be ineligible for award of the contract resulting from such procurement.
(2) If the Contractor, through the performance of this contract, is required to participate in technical reviews or provide engineering consultation services on its own

proposals/quotations, products, or services (or those of its affiliate(s) or competitor(s)) provided under a different contract(s), the Contractor shall be ineligible to perform such work as a prime or subcontractor.

(End of clause)

H.3 NFS 1852.225-70 EXPORT LICENSES. (FEB 2000)

(a) The Contractor shall comply with all U.S. export control laws and regulations, including the International Traffic in Arms Regulations (ITAR), 22 CFR parts 120-130, and the Export Administration Regulations (EAR), 15 CFR parts 730-799, in the performance of this contract. In the absence of available license exemptions/exceptions, the Contractor shall be responsible for obtaining the appropriate licenses or other approvals, if required, for exports of hardware, technical data, and software, or for the provision of technical assistance.

(b) The Contractor shall be responsible for obtaining export licenses, if required, before utilizing foreign persons in the performance of this contract, including instances where the work is to be performed on-site at NASA HQ and other NASA centers, where the foreign person will have access to export-controlled technical data or software.

(c) The Contractor shall be responsible for all regulatory record keeping requirements associated with the use of licenses and license exemptions/exceptions.

(d) The Contractor shall be responsible for ensuring that the provisions of this clause apply to its subcontractors.

(End of clause)

H.4 GSFC 52.223-92 GOVERNMENT PROPERTY - COMPLIANCE WITH SAFETY STANDARDS. (FEB 2016)

This contract involves the use of Government-furnished property or installation provided property. If any of the property does not conform to applicable Federal, state, or local safety standards, the Contractor shall promptly notify the Contracting Officer in writing with a copy to the NASA Headquarters Safety and Occupational Health, Dept. HQ:LM032

(End of clause)

SECTION F – DELIVERIES OR PERFORMANCE

I.1 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) clauses: https://www.acquisition.gov/browse/index/far

NASA FAR Supplement (NFS) clauses:
https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf.https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf.

(End of clause)

I.2 FAR 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any NASA FAR Supplement (48 CFR Chapter 18) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

I.3 CLAUSES INCORPORATED BY REFERENCE

FAR 52.202-1	DEFINITIONS. (JUN 2020)
FAR 52.203-3	GRATUITIES. (APR 1984)
FAR 52.203-5	COVENANT AGAINST CONTINGENT FEES. (MAY 2014)
FAR 52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT. (JUN 2020)
FAR 52.203-7	ANTI-KICKBACK PROCEDURES. (JUN 2020)
FAR 52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)
FAR 52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY. (MAY 2014)
FAR 52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEPT 2024)
FAR 52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS. (JUN 2020)
FAR 52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT. (NOV 2021)
FAR 52.203-14	DISPLAY OF HOTLINE POSTER(S). (NOV 2021) Paragraph (b)(3) insert: Inspector General Hotline Posters may be obtained from https://oig.nasa.gov/hotline.html.

SECTION F – DELIVERIES OR PERFORMANCE

FAR 52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS. (JAN 2017)
FAR 52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL. (JAN 2011)
FAR 52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS. (JUN 2020)
FAR 52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE. (OCT 2018)
FAR 52.204-15	SERVICE CONTRACT REPORTING REQUIREMENTS FOR INDEFINITE-DELIVERY CONTRACTS. (OCT 2016)
FAR 52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS. (DEC 2014)
FAR 52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED. (JAN 2025)
FAR 52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)
FAR 52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS. (NOV 2015)
FAR 52.210-1	MARKET RESEARCH. (NOV 2021)
FAR 52.215-2	AUDIT AND RECORDS - NEGOTIATION. (JUN 2020)
FAR 52.215-8	ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT. (OCT 1997)
FAR 52.215-11	PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (JUN 2020)
FAR 52.215-14	INTEGRITY OF UNIT PRICES. (NOV 2021)
FAR 52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS. (JUL 2005)
FAR 52.215-19	NOTIFICATION OF OWNERSHIP CHANGES. (OCT 1997)
FAR 52.215-21	REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA - MODIFICATIONS. (NOV 2021)
FAR 52.215-23	LIMITATIONS ON PASS-THROUGH CHARGES. (JUN 2020)
FAR 52.216-7	ALLOWABLE COST AND PAYMENT. (AUG 2018) Paragraph a(3) insert: 30th day
FAR 52.216-8	FIXED FEE. (JUN 2011)
FAR 52.217-8	OPTION TO EXTEND SERVICES. (NOV 1999) Insert paragraph a: 30 days before contract expiration.
FAR 52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS. (JAN 2025)
FAR 52.219-28	POST-AWARD SMALL BUSINESS PROGRAM REREPRESENTATION. (JAN 2025) ALTERNATE I (MAR 2020). Paragraph (h)(1) insert: The contractor represents its small business size status for each one of the NAICS codes assigned to this contract.

SECTION F – DELIVERIES OR PERFORMANCE

	Representation under NAICS 541611	(Yes/No)	Comments
h(1)	Small Business Concern under NAICS Code		
h(2)	Small Disadvantaged Business Concern (if answered "Is" in #1)		
h(3)	Women-Owned Small Business Concern (if answered "Is" in #1)		
h(4)	WOSB Joint Venture under WOSB Program		JV Parties & UEIs:
h(5)	EDWOSB Joint Venture		JV Parties & UEIs:
h(6)	Veteran-Owned Small Business Concern (if answered "Is" in #1)		
h(7)	Service-Disabled Veteran-Owned Small Business (if answered "Is" in #6)		
h(8)	SDVOSB Joint Venture under SDVOSB Program		JV Parties & UEIs:
h(9)(i)	HUBZone Small Business Concern (if answered "Is" in #1)		
h(9)(ii)	HUBZone Joint Venture (if answered "Is" in 9(i))		HUBZone JV Parties:

FAR 52.222-2 PAYMENT FOR OVERTIME PREMIUMS. (JUL 1990)
Paragraph (a) insert: $0
FAR 52.222-3 CONVICT LABOR. (JUN 2003)
FAR 52.222-35 EQUAL OPPORTUNITY FOR VETERANS. (JUN 2020)
FAR 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES. (JUN 2020)
FAR 52.222-37 EMPLOYMENT REPORTS ON VETERANS. (JUN 2020)
FAR 52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT. (DEC 2010)
FAR 52.222-50 COMBATING TRAFFICKING IN PERSONS. (OCT 2025)
FAR 52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION. (JAN 2025)
FAR 52.223-5 POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION. (MAY 2024)
FAR 52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (DEVIATION FEB 2025)
FAR 52.224-1 PRIVACY ACT NOTIFICATION. (APR 1984)
FAR 52.224-2 PRIVACY ACT. (APR 1984)
FAR 52.224-3 PRIVACY TRAINING. (JAN 2017)
FAR 52.226-7 DRUG-FREE WORKPLACE. (MAY 2024)
FAR 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING. (MAY 2024)
FAR 52.227-1 AUTHORIZATION AND CONSENT. (JUN 2020)
FAR 52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT. (JUN 2020)
FAR 52.227-14 RIGHTS IN DATA-GENERAL. (MAY 2014)

SECTION F – DELIVERIES OR PERFORMANCE

FAR 52.227-17	RIGHTS IN DATA - SPECIAL WORKS. (DEC 2007)
FAR 52.228-7	INSURANCE - LIABILITY TO THIRD PERSONS. (MAR 1996)
FAR 52.232-9	LIMITATION ON WITHHOLDING OF PAYMENTS. (APR 1984)
FAR 52.232-17	INTEREST. (MAY 2014)
FAR 52.232-22	LIMITATION OF FUNDS. (APR 1984)
FAR 52.232-23	ASSIGNMENT OF CLAIMS. (MAY 2014)
FAR 52.232-25	PROMPT PAYMENT. (JAN 2017) ALTERNATE I (FEB 2002)
FAR 52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT. (OCT 2018)
FAR 52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS. (JUN 2013)
FAR 52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS. (MAR 2023)
FAR 52.233-1	DISPUTES. (MAY 2014) ALTERNATE I (DEC 1991)
FAR 52.233-3	PROTEST AFTER AWARD. (AUG 1996) ALTERNATE I (JUN 1985)
FAR 52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM. (OCT 2004)
FAR 52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION. (APR 1984)
FAR 52.237-3	CONTINUITY OF SERVICES. (JAN 1991)
FAR 52.242-1	NOTICE OF INTENT TO DISALLOW COSTS. (APR 1984)
FAR 52.242-3	PENALTIES FOR UNALLOWABLE COSTS. (DEC 2022)
FAR 52.242-4	CERTIFICATION OF FINAL INDIRECT COSTS. (JAN 1997)
FAR 52.242-13	BANKRUPTCY. (JUL 1995)
FAR 52.243-2	CHANGES-COST-REIMBURSEMENT. (AUG 1987) ALTERNATE I (APR 1984)
FAR 52.244-2	SUBCONTRACTS. (JUN 2020) Paragraph (d) insert: Professional and consultant costs as defined in FAR 31.205-33 Paragraph (j) insert: TBD
FAR 52.244-5	COMPETITION IN SUBCONTRACTING. (AUG 2024)
FAR 52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (DEVIATION FEB 2025)
FAR 52.245-1	GOVERNMENT PROPERTY. (SEP 2021)
FAR 52.245-9	USE AND CHARGES. (APR 2012)
FAR 52.246-25	LIMITATION OF LIABILITY - SERVICES. (FEB 1997)
FAR 52.247-63	PREFERENCE FOR U.S.-FLAG AIR CARRIERS. (JAN 2025)
FAR 52.247-69	REPORTING REQUIREMENT FOR U.S.-FLAG AIR CARRIERS REGARDING TRAINING TO PREVENT HUMAN TRAFFICKING. (JAN 2025)
FAR 52.249-6	TERMINATION (COST-REIMBURSEMENT). (MAY 2004)
FAR 52.249-14	EXCUSABLE DELAYS. (APR 1984)
FAR 52.253-1	COMPUTER GENERATED FORMS. (JAN 1991)
NFS 1852.203-70	DISPLAY OF INSPECTOR GENERAL HOTLINE POSTERS. (JUN 2001)

SECTION F – DELIVERIES OR PERFORMANCE

NFS 1852.203-71	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS. (JUL 2023)
NFS 1852.215-84	OMBUDSMAN. (NOV 2023)
NFS 1852.216-89	ASSIGNMENT AND RELEASE FORMS. (AUG 2016)
NFS 1852.223-74	DRUG- AND ALCOHOL-FREE WORKFORCE. (OCT 2023)
NFS 1852.227-11	PATENT RIGHTS—OWNERSHIP BY THE CONTRACTOR (APR 2015).
NFS 1852.227-14	RIGHTS IN DATA—GENERAL (APR 2015).
NFS 1852.228-75	MINIMUM INSURANCE COVERAGE. (OCT 1988)
NFS 1852.237-72	ACCESS TO SENSITIVE INFORMATION. (JUN 2005)
NFS 1852.237-73	RELEASE OF SENSITIVE INFORMATION. (JUN 2005)
NFS 1852.242-78	EMERGENCY MEDICAL SERVICES AND EVACUATION. (APR 2001)

(End of by reference clauses)

I.4 FAR 52.216-19 ORDER LIMITATIONS. (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than **$25,000.00**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor -

(1) Any order for a single item in excess of **$10,000,000.00**;

(2) Any order for a combination of items in excess of **$10,000,000.00**; or

(3) A series of orders from the same ordering office within **10** days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **5** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

I.5 FAR 52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity

designated in the Schedule as the *maximum.* The Government shall order at least the quantity of supplies or services designated in the Schedule as the *minimum.*

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided,* that the Contractor shall not be required to make any deliveries under this contract after **1 year from the end of the effective ordering period.**

(End of clause)

I.6 FAR 52.219-17 SECTION 8(a) AWARD. (OCT 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section 8(a) of the Small Business Act, as amended (15 U.S.C. 637(a)).

(2) Except for novation agreements, delegates to the **NASA GSFC Headquarters Procurement Office** the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the **NASA GSFC Headquarters Procurement Office** Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the “Disputes” clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

I.7 FAR 52.219-18 NOTIFICATION OF COMPETITION LIMITED TO ELIGIBLE 8(a) PARTICIPANTS. (OCT 2022)

(a) Offers are solicited only from—

(1) Small business concerns expressly certified by the Small Business Administration (SBA) for participation in SBA's 8(a) program and which meet the following criteria at the time of submission of offer—

(i) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan; and

(ii) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by SBA;

(2) A joint venture, in which at least one of the 8(a) program participants that is a party to the joint venture complies with the criteria set forth in paragraph (a)(1) of this clause, that complies with 13 CFR 124.513(c); or

(3) A joint venture—

(i) That is comprised of a mentor and an 8(a) protégé with an approved mentor-protégé agreement under the 8(a) program;

(ii) In which at least one of the 8(a) program participants that is a party to the joint venture complies with the criteria set forth in paragraph (a)(1) of this clause; and

(iii) That complies with 13 CFR 124.513(c).

(b) By submission of its offer, the Offeror represents that it meets the applicable criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made to the Small Business Administration, which will subcontract performance to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation. A contracting officer may consider a joint venture for contract award. SBA does not approve joint ventures for competitive awards, but see 13 CFR 124.501(g) for SBA's determination of participant eligibility.

(d) The **TBD** shall notify the **NASA GSFC Headquarters Procurement Office** Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock.

(End of clause)

I.8 NFS 1852.216-80 TASK ORDERING PROCEDURE. (OCT 1996)

(a) Only the Contracting Officer may issue task orders to the Contractor, providing specific authorization or direction to perform work within the scope of the contract and as specified in the schedule. The Contractor may incur costs under this contract in performance of task orders and task order modifications issued in accordance with this clause. No other costs are authorized unless otherwise specified in the contract or expressly authorized by the Contracting Officer.

(b) Prior to issuing a task order, the Contracting Officer shall provide the Contractor with the following data:

(1) A functional description of the work identifying the objectives or results desired from the contemplated task order.

(2) Proposed performance standards to be used as criteria for determining whether the work requirements have been met.

(3) A request for a task plan from the Contractor to include the technical approach, period of performance, appropriate cost information, and any other information required to determine the reasonableness of the Contractor's proposal.

(c) Within 7 calendar days after receipt of the Contracting Officer's request, the Contractor shall submit a task plan conforming to the request.

(d) After review and any necessary discussions, the Contracting Officer may issue a task order to the Contractor containing, as a minimum, the following:

(1) Date of the order.

(2) Contract number and order number.

(3) Functional description of the work identifying the objectives or results desired from the task order, including special instructions or other information necessary for performance of the task.

(4) Performance standards, and where appropriate, quality assurance standards.

(5) Maximum dollar amount authorized (cost and fee or price). This includes allocation of award fee among award fee periods, if applicable.

(6) Any other resources (travel, materials, equipment, facilities, etc.) authorized.

(7) Delivery/performance schedule including start and end dates.

(8) If contract funding is by individual task order, accounting and appropriation data.

(e) The Contractor shall provide acknowledgement of receipt to the Contracting Officer within 5 calendar days after receipt of the task order.

(f) If time constraints do not permit issuance of a fully defined task order in accordance with the procedures described in paragraphs (a) through (d), a task order which includes a ceiling price may be issued.

(g) The Contracting officer may amend tasks in the same manner in which they are issued.

(h) In the event of a conflict between the requirements of the task order and the Contractor's approved task plan, the task order shall prevail.

(End of clause)

I.9 NFS 1852.219-18 NOTIFICATION OF COMPETITION LIMITED TO ELIGIBLE 8(a) CONCERNS. (APR 2015)

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in the SBA's 8(a) Program and which meet the following criteria at the time of submission of offer -

(1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan; and

(2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by the SBA.

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made directly by the Contracting Officer to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d)(1) *Agreement.* A small business concern submitting an offer in its own name shall furnish, in performing the contract, only end items manufactured or produced by small business concerns in the United States or its outlying areas. If this procurement is processed under simplified acquisition procedures and the total amount of this contract does not exceed $25,000, a small business concern may furnish the product of any domestic firm. This paragraph does not apply to construction or service contracts.

(2) The **TBD** will notify the **NASA GSFC Headquarters Procurement** Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(End of clause)

I.10 NFS 1852.225-71 RESTRICTION ON FUNDING ACTIVITY WITH CHINA (FEB 2012) (DEVIATION 12-01A)

(a) Definition - "China" or "Chinese-owned company" means the People's Republic of China, any company owned by the People's Republic of China or any company incorporated under the laws of the People's Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 539, restrict NASA from contracting to participate, collaborate, coordinate bilaterally in any way with China or a Chinese-owned company using funds appropriated on or after April 25, 2011. Contracts for commercial and non developmental items are exempted from the prohibition because they constitute purchase of goods or services that would not involve participation, collaboration, or coordination between the parties.

(c) This contract may use restricted funding that was appropriated on or after April 25, 2011. The contractor shall not contract with China or Chinese-owned companies for any effort related to this contract except for acquisition of commercial and non-developmental items. If the contractor anticipates making an award to China or Chinese-owned companies, the contractor must contact the contracting officer to determine if funding on this contract can be used for that purpose.

(d) Subcontracts - The contractor shall include the substance of this clause in all subcontracts made hereunder.

(End of clause)

I.11 GSFC 52.222-42 GSFC MODIFICATION TO FAR 52.222-42 --STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES. (JUL 2024)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

EMPLOYEE CLASS MONETARY WAGE-FRINGE BENEFITS

LABOR CATGORIES **General Schedule (GS) Positions**	**HOURLY RATES***	**GRADE/STEP**
Administrative Specialist	$38.79	GS-9 Step 6
Data Warehouse Specialist	$38.50	GS-9 Step 6
Financial Analyst, Jr.	$21.32	GS-5 Step 1
Help Desk Analyst, Jr.	$37.76	GS-9 Step 6
Help Desk Analyst, Sr.	$41.82	GS-11 Step 3
Logistics Analyst, Jr.	$38.79	GS-9 Step 6
Logistics Analyst, Sr.	$38.79	GS-9 Step 6
Office Manager	$38.79	GS-9 Step 6
Project Control Specialist	$26.81	GS-7 Step 2
Solicitation Specialist, Jr.	$38.50	GS-9 Step 6
Solicitation Specialist, Sr.	$47.57	GS-12 Step 2
Technical Writer/Editor	$31.47	GS-7 Step 7

* Fringes are as follows:

1. Holidays: New Year's Day, Birthday of Martin Luther King Jr., Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veteran Day, Thanksgiving Day, Christmas Day, and Inauguration Day (when applicable).
2. Annual Leave:

Annual Leave Accrual Rates			
Employee Type	**Less than 3 years of service ***	**3 years but less than 15 years of service ***	**15 or more years of service ***
Full-time employees	½ day (4 hours) for each pay period	¾ day (6 hours) for each pay period, except 1¼ day (10 hours) in last pay period	1 day (8 hours) for each pay period
Part-time employees	1 hour for each 20 hours in a pay status	1 hour for each 13 hours in a pay status	1 hour for each 10 hours in a pay status

3. Sick leave:

Sick Leave Accrual	
Description	**Time**
Full-time employees	½ day (4 hours) for each biweekly pay period
Part-time employees	1 hour for each 20 hours in a pay status

4. Life insurance, health insurance, workers' compensation, and Federal Insurance Compensation Act (for temporary employees) at 7 percent of basic hourly rate.
5. Retirement contributions are 7% for employees hired before January 1, 1986. Employees hired on or after that date contribute 0.8%, with 3.1% for those hired on or after January 1, 2013, and 4.4% for those hired on or after January 1, 2014.
6. Medicare at 1.45 percent of basic hourly rates for employees.
7. Social Security: 6.2 percent of basic hourly rates for employees hired on or after January 1, 1986, up to the 2025 wage base limit of $168,600 in annual earnings.

(End of clause)

I.12 FAR 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years and 6 months.

I.13 NFS 1852.240-76 SECURITY REQUIREMENTS FOR UNCLASSIFIED INFORMATION TECHNOLOGY RESOURCES (DEVIATION SEPT 2025)

(a) The contractor must protect the confidentiality, integrity, and availability of NASA Electronic Information and Information Technology (IT) resources and protect NASA Electronic Information from unauthorized disclosure.
(b) This clause is applicable to all NASA contractors and sub-contractors that process, manage, access, or store unclassified electronic information, to include Sensitive But Unclassified (SBU) information or Controlled Unclassified Information (CUI), for NASA in support of NASA's missions, programs, projects and/or institutional requirements. Applicable requirements, regulations, policies, and guidelines are identified in contract. The NASA data requirements description (DRD), "Security for Unclassified Information Technology Resources," defines specific implementation requirements for this clause. For policy information considered sensitive, the documents will be identified as such in the contract and made available through the contracting officer.

(c) Definitions.
(1) IT resources means any hardware or software or interconnected system or subsystem of equipment, that is used to process, manage, access, or store electronic information.
(2) NASA Electronic Information is any data (as defined in the Rights in Data clause of this contract) or information (including information incidental to contract administration, such as financial, administrative, cost or pricing, or management information) that is processed, managed, accessed or stored on an IT system(s) in the performance of a NASA contract.
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(3) Federal Information System (FIS). The term "Federal information system" means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency (40 U.S.C. 11331)
(4) Information System Security Plan (i.e., System Security Plan, IT Security Plan, or Security Plan) means a formal document that provides an overview of the security requirements for an information system and describes the security controls in place or planned for meeting those requirements.
(d) Contractors that process, store, or transmit Federal information or operate information systems on behalf of the federal government must meet the same security and privacy requirements as federal agencies. The contractor must develop and submit an Information Security Plan when operating a FIS or maintaining or collecting information for the purpose of processing, storing, or transmitting federal information, and those activities are not incidental to providing a service or product to the Government. Such FIS plans are to be accomplished in accordance with the current version of NASA Procedural Requirements (NPR) 2810.1 Security of Information and Information Systems. The security plan and Authorization to Operate (ATO) must be in place before any system may operate in the NASA environment. When the contractor does not operate a FIS but receives, process, transmits, or stores NASA information in performance of the contract, the contractor must attest to the ability to secure NASA information within its own IT/information system.
(e) The contractor must afford Government access to the contractor's and subcontractors' facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access must be provided to the extent required to carry out a program of IT inspection (to include vulnerability testing), investigation and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of NASA Electronic Information or to the function of IT systems operated on behalf of NASA, and to preserve evidence of computer crime. The contractor must report immediately upon notification any incident involving NASA information on non-federal (contractor) systems.
(f) The contractor must provide the name and contact information for the contractor's IT security point of contact during phase in of the contract. Contractor employees requiring physical access to NASA facilities or electronic access to NASA systems must complete the NASA Cybersecurity and Privacy Awareness Training.
(g) The contractor must insert this clause, including this paragraph in all subcontracts that process, manage, access or store NASA Electronic Information in support of the mission of the Agency.

(End of clause)

SECTION J - LIST OF ATTACHMENTS

J.1 GSFC 52.211-101 LIST OF ATTACHMENTS. (NOV 2022)

The following documents are attached hereto and made a part of this contract:

Attachment	Description	Date	No. of Pages (including the cover page)
A	Statement of Work (SOW)	DEC 2025	26
B	Direct Labor Rates, Indirect Rates, and Fixed Fee Matrices	TBP	TBP
C	Financial Management Reporting Requirements	JUN 2014	4
D	Government Furnished Property (GFP)	FEB 2024	11
E	Contract Data Requirements List (CDRL)	OCT 2024	6
F	Department of Labor (DOL), Wage Determination (WD)	APR 2025	12
G	Contract Historical Data	MAR 2015	3
H	Organizational Conflicts of Interest (OCI) Avoidance Plan	TBP	TBP
I	Information System Security Plan (ISSP)	*TBS	*TBS
J	Organizational Conflict of Interest (OCI) Plan Data Requirements Description (DRD)	MAY 2025	5
K	Security Requirements for Unclassified IT Resources DRD	APR 2025	6
L	Requirements Statement List	NOV 2022	5

TBP = To Be Proposed
TBS = To Be Submitted
*TBS at the start of Phase-In

(End of clause)

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS OR RESPONDENTS

K.1 FAR 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018)

(a) *Definitions.* As used in this provision -

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means -

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in -

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via *https://www.sam.gov* (see 52.204-7).

(End of provision)

K.2 FAR 52.209-12 CERTIFICATION REGARDING TAX MATTERS. (OCT 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed $7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has □ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not □ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not □, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

K.3 FAR 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS - CERTIFICATION. (NOV 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

____ (1) The Offeror certifies that -

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at *https://www.state.gov/bureaus-offices/under-secretary-*

for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at *https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/*; or

____ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to *NDAA1290Cert@state.gov.* To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless -

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has -

(i) Waived application under U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K.4 NFS 1852.225-72 RESTRICTION ON FUNDING ACTIVITY WITH CHINA - REPRESENTATION (FEB 2012) (DEVIATION)

(a) Definition - "China" or "Chinese-owned" means the People's Republic of China, any company owned by the People's Republic of China or any company incorporated under the laws of the People's Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 536, restrict NASA from contracting to participate, collaborate, or coordinate bilaterally in any way with China or a Chinese-owned company with funds appropriated on or after April 25, 2011. Contracts for commercial and non-developmental items are excepted from the prohibition as they constitute purchase of goods or services that would not involve participation, collaboration, or coordination between the parties.

(c) Representation. By submission of its offer, the offeror represents that the offeror is not China or a Chinese-owned company.

(End of clause)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

L.1 CLAUSES INCORPORATED BY REFERENCE

FAR 52.204-7	SYSTEM FOR AWARD MANAGEMENT. (NOV 2024)
FAR 52.215-1	INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION. (NOV 2021)
FAR 52.215-16	FACILITIES CAPITAL COST OF MONEY. (JUN 2003)
FAR 52.215-22	LIMITATIONS ON PASS-THROUGH CHARGES - IDENTIFICATION OF SUBCONTRACT EFFORT. (OCT 2009)
FAR 52.233-3	PROTEST AFTER AWARD. (AUG 1996) ALTERNATE I (JUN 1985)
FAR 52.237-10	IDENTIFICATION OF UNCOMPENSATED OVERTIME. (MAR 2015)

(End of by reference clauses)

L.2 FAR 52.216-1 TYPE OF CONTRACT. (APR 1984)

The Government contemplates award of a Cost-Plus-Fixed-Fee (CPFF), Indefinite-Delivery Indefinite-Quantity (IDIQ), single-award contract with CPFF task orders resulting from this solicitation.

(End of provision)

L.3 FAR 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation (FAR) clauses: https://www.acquisition.gov/browse/index/far

NASA FAR Supplement (NFS) clauses:
https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf.

(End of provision)

L.4 FAR 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any NASA FAR Supplement (48 CFR chapter 18) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

L.5 NFS 1852.245-80 GOVERNMENT PROPERTY MANAGEMENT INFORMATION. (JAN 2011)

(a) The offeror shall identify the industry leading or voluntary consensus standards, and/or the industry leading practices, that it intends to employ for the management of Government property under any contract awarded from this solicitation.

(b) The offeror shall provide the date of its last Government property control system analysis along with its overall status, a summary of findings and recommendations, the status of any recommended corrective actions, the name of the Government activity that performed the analysis, and the latest available contact information for that activity.

(c) The offeror shall identify any property it intends to use in performance of this contract from the list of available Government property in the provision at 1852.245-81, List of Available Government Property.

(d) The offeror shall identify all Government property in its possession, provided under other Government contracts that it intends to use in the performance of this contract. The offeror shall also identify: The contract that provided the property, the responsible Contracting Officer, the dates during which the property will be available for use (including the first, last, and all intervening months), and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent, the amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges (June 2007), and the contact information for the responsible Government Contracting Officer. The offeror shall provide proof that such use was authorized by the responsible Contracting Officer.

(e) The offeror shall disclose cost accounting practices that allow for direct charging of commercially available equipment, when commercially available equipment is to be used in performance of the contract and the equipment is not a deliverable.

(f) The offeror shall identify, in list form, any equipment that it intends to acquire and directly charge to the Government under this contract. The list shall include a description, manufacturer, model number (when available), quantity required, and estimated unit cost. Equipment approved as part of the award need not be requested under NFS clause 1852.245-70,

(g) The offeror shall disclose its intention to acquire any parts, supplies, materials or equipment, to fabricate an item of equipment for use under any contract resulting from this solicitation when that item of equipment:

Will be titled to the government under the provisions of the contract; is not included as a contract deliverable; and the Contractor intends to charge the costs of materials directly to the contract. The disclosure shall identify the end item or system and shall include all descriptive information, identification numbers (when available), quantities required and estimated costs.

(h) Existing Government property may be reviewed at the following locations, dates, and times: **N/A**

(End of provision)

L.6 NFS 1852.245-81 LIST OF AVAILABLE GOVERNMENT PROPERTY. (JAN 2011)

(a) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for-use basis in accordance with FAR 52.245-1, Government Property, included in this solicitation. The offeror shall notify the Government, as part of its proposal, of its intention to use or not use the property.

See Attachment D

(b) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for-use basis in accordance with FAR 52.245-2, Government Property Installation Operation Services, as included in this solicitation. The offeror shall notify the Government of its intention to use or not use the property.

N/A

(c) The selected Contractor will be responsible for costs associated with transportation, and installation of the property listed in this provision.

(End of provision)

L.7 GSFC 52.215-201 PROPOSAL PREPARATION - GENERAL INSTRUCTIONS. (APR 2022)

It is NASA's intent, by providing the instructions set forth below, to solicit information that will demonstrate the Offeror's competence to successfully complete the requirements specified in the Statement of Work (SOW), Attachment A, and the Representative Task Order Enclosures. Generally, the proposal should:

- Demonstrate understanding of the overall and specific requirements of the proposed contract.
- Convey the company's capabilities for transforming understanding into accomplishment.
- Present in detail, the plans and methods for so doing.
- Present the costs associated with so doing.

In the event that other organizations are proposed as being involved in conducting this work, their relationships during the effort shall be explained and their proposed contributions shall be identified and integrated into each part of the proposal, as appropriate.

<u>***As part of the Request for Proposal, the offeror shall respond to three Representative Task Orders (RTOs) as described in **L.11**. The RTOs are for evaluation purposes only and THE</u>

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

OFFEROR will not PERFORM ANY ACTUAL WORK **OR PRODUCE ANY DELIVERABLES** ON RTOs IN RESPONSE TO THE RFP***

(a) PROPOSAL FORMAT AND ORGANIZATION

(1) Offerors shall submit proposals in four volumes as specified below:

Volume	Title
I	Offer Volume
II	Mission Suitability Volume
III	Cost Volume
IV	Past Performance Volume

(2) All pages of Volumes I, II, III, and IV shall be numbered and identified with the Offeror's name, RFP number and date. Subsequent revisions, if requested, shall be similarly identified to show revision number and date. A table of contents shall be provided with figures and tables listed separately.

(3) Each proposal volume shall be submitted in a single searchable Adobe Portable Document Format (PDF) file (compatible with ADOBE Reader version DC or 2017), with appropriate bookmarks. For Cost volume exhibits required to be submitted in Microsoft Office Excel format (described below), spreadsheets shall also be converted to PDF, in the most readable manner practicable, and submitted as part of a single PDF file for Volume III.

As indicated above, the Cost Volume exhibits shall also be provided in Excel format (compatible with Excel 2016). While the RFP provides these exhibits in PDF format, instructions for converting from PDF format to Excel can be found in the Cost Volume Instructions provision. Offerors shall submit all exhibits in Excel and the exhibits shall contain all formulas.

(4) The format for each proposal volume shall parallel, to the greatest extent possible, the format of the evaluation factors contained in Section L of this solicitation. The proposal content shall provide a basis for evaluation against the requirements of the solicitation. Each volume of the proposal shall specify the evaluation criteria being addressed and contain a table of contents aligned with the RFP evaluation criteria. This table of contents is excluded from the page limitations contained in paragraph (b)(1) below.

(5) Information shall be precise, factual, detailed and complete. Offerors shall not assume that the evaluation team is aware of company abilities, capabilities, plans, facilities, organization or any other pertinent fact that is important to accomplishment of the work as specified in the SOW.

The evaluation will be based primarily on the information presented in the written proposal. The proposal shall specifically address each listed evaluation factor and subfactor.

(b) PROPOSAL CONTENT AND PAGE LIMITATIONS

(1) The following table contains the page limitations for each portion of the proposal submitted in response to this solicitation. Additional instructions for each component of the proposal are located in the solicitation provision noted under the Reference heading.

Proposal Component	Volume	Reference	Page Limitations
Offer Volume	**I**	**L.10**	**None**
Organizational Conflict of Interest Avoidance Plan			
Mission Suitability Volume	**II**	**L.11**	**50 Pages***
Cover Page, Indices, Table of Contents, SOW Compliance Matrix, Total Compensation Plan, Phase-in Plan, Position Descriptions, and List of Acronyms			**Excluded**
Cost Volume	**III**	**L.12**	**Mixed**
(a) Table of Contents, Direct Labor Rates, Indirect Rates, and Fee Matrices (Attachment B)			**None**
(b) Cost Exhibits			**None**
(c) Basis of Estimates			**40 Pages***
Past Performance Volume	**IV**	**L.13**	**Mixed**
(a) Information from the Offeror			**50 Pages***
(b) Cover Page, Indices, Table of Contents, List of those sent Past Performance Questionnaires, Customer Evaluations, Termination/Descope information, and List of Acronyms			**Excluded**

*Prime Offeror individually and each Significant Subcontractor individually.

(2) When page limitations apply to a volume or specific section, a page is defined as one side of a sheet, 8-1/2" x 11", with at least one-inch margins on all sides, using not smaller than 12-point type Times New Roman font. Line spacing or the amount of vertical space between lines of text shall not be less than single line (Microsoft Office Word's default line spacing). Character spacing shall be "Normal", not "Expanded" or "Condensed." The margins may contain headers and footers but shall not contain any proposal content to be evaluated. Electronic foldout pages count as an equivalent number of 8-1/2" x 11" pages. The metric standard format most closely approximating the described standard 8-1/2" x 11" size may also be used. The excel exhibits provided are formatted using 9–12-point type Arial font.

Diagrams, tables, artwork, and photographs may be reduced and, if necessary, run landscape to eliminate oversize pages. Text in Diagrams, schedules, charts, tables, artwork, and photographs shall be no smaller than 10-point type Times New Roman font. Diagrams, tables, artwork, and photographs shall not be used to circumvent the text size limitations of the proposal.

(3) Title pages, tabs, and tables of contents are excluded from the page counts specified in paragraph (1) of this provision (as well as other documents specified in table (b)(1) above). Proposal sections that do not have an associated page limit should be strictly limited to the information described as part of that section. Regardless of where it appears in the proposal, information construed as belonging in a page-limited section of the proposal will be so construed and count against that section's page limit.

(4) The Government intends to evaluate proposals and award contract(s) without discussions with Offerors (except clarifications as described in FAR 15.306(a)). Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If discussions are held and final proposal revisions are requested, the Government will specify separate page limitations in its request for that submission.

(5) Pages submitted in excess of the limitations specified in this provision will not be evaluated by the Government and will be handled in accordance with NFS 1815.204-70(b).

(End of provision)

L.8 GSFC 52.215-203 OFFER VOLUME. (APR 2022)

This must be a separate volume.

(a) *STANDARD FORM (SF) 33, OFFEROR FILL INS AND SECTION K*

Blocks 12 through 18 of the SF 33 and the indicated Offeror required fill-ins in Sections B-K must be completed. The signed SF33 and the pages with the required fill-ins must be submitted. Annual representations and certifications shall be completed electronically via the System for Awards Management (SAM) web site accessed through https://www.acquisition.gov, in accordance with Section K provision FAR 52.204-8, Annual Representations and Certifications.

The balance of the solicitation need not be returned unless the Offeror has made changes to other pages that will constitute part of the contract. Any such changes must be separately identified in the Summary of Exceptions. **All SF 33s require original or electronic signatures. For Joint Venture (JV) proposals, see FAR 4.102 for signature requirements.**

(1) It is requested that Offerors indicate, in Block 12 of the SF 33, a proposal validity period of **120** days. However, in accordance with paragraph (d) of FAR provision 52.215-1, "Instructions

to Offerors--Competitive Acquisitions," a different validity period may be proposed by the Offeror.

(2) Provide the names, phone numbers, and email addresses of persons to be contacted for clarification of questions of a technical nature and business nature. Identify any consultants and/or subcontractors used in writing this proposal (if any) and the extent to which their services will be available in the subsequent performance of this effort.

The contract schedule refers to TBD and TBP. They are defined as follows:

TBD = TO BE DETERMINED BY THE GOVERNMENT
TBP = TO BE PROPOSED BY THE CONTRACTOR

(b) *SUMMARY OF EXCEPTIONS*

Include a statement of acceptance of the anticipated contract provisions and proposed contract schedule, or list all specific exceptions to the terms, conditions, and requirements of Sections A through J of this solicitation, to the Representations and Certifications (Section K) or to the information requested in Section L. Include the reason for the exception, new terms, conditions, and/or clauses, including any proposed benefit to the Government. This list must include all exception(s), deviation(s) and/or conditional assumptions taken.

Offerors are cautioned that exceptions or new terms, conditions, or clauses may result in a determination of proposal unacceptability (NFS 1815.305-70), may preclude award to an Offeror if award is made without discussions, or may otherwise affect an Offeror's competitive standing.

(c) *ADDITIONAL INFORMATION TO BE FURNISHED*

(1) Business Systems
State whether all business systems, including but not limited to accounting, property control, purchasing, estimating, and employee compensation, which require Government acceptance or approval (as applicable) are currently accepted/approved without condition.

Provide the date of acceptance/approval for each system and the cognizant contract administration office. Explain any existing conditional acceptances/approvals and the compliance status of any systems(s) for which acceptance or approval is currently withheld. FAR 16.301-3 requires that a contractor's accounting system be adequate for determining costs applicable to the contract prior to the award of a cost-reimbursement contract. The Offeror shall provide evidence of an adequate accounting system as determined by the cognizant administrative office for accumulating and reporting incurred costs. If an Offeror is relying on the accounting system adequacy of a Joint Venture team member, sister company, or any other affiliated company's accounting system, they must specifically assert such an intended reliance for the performance of this contract and must demonstrate a convincing basis for using that system as a source for determining their own adequacy in this proposal volume. An adequate

accounting system is not an evaluation criterion. It is a basic contract requirement with a pass/fail determination. A contract may only be awarded to the Offeror(s) who are determined to have an adequate accounting system.

Offerors who do not have an adequate accounting system determination shall provide evidence of any independent audit and system approvals as well as documented system ability to segregate and accrue costs by contract and segregate unallowable costs from allowable costs.

(2) Contract Administration

Furnish the information listed below:
a. Cognizant Government audit agency with mailing address, email address, telephone number, and fax number.
b. Cognizant Government inspection agency with mailing address, email address, telephone number, and fax number.
c. Cognizant Government Administrative Contracting Officer by name with mailing address, email address, telephone number, and fax number.

(3) Responsibility Information

Provide information addressing all of the elements under FAR 9.104 to demonstrate responsibility (address the elements under this section that are not addressed in another proposal volume).

(4) Taxpayer Identification Number

Prime Offerors shall provide their Taxpayer Identification Number (TIN) (the number required by the Internal Revenue Service (IRS) to be used by the Offeror in reporting income tax and other returns).

(5) 8(a) Joint Ventures

The individual 8(a) participant(s) to an 8(a) Joint Venture (JV) shall be 8(a) program certified at the time of proposal submission, and in accordance with 13 CFR 124.513(e)(1), the SBA shall approve the 8(a) JV agreement prior to contract award.

If an 8(a) joint venture is proposed, the Offeror shall describe its status in achieving joint venture approval from the Small Business Administration, including:
- Identify the companies included in the joint venture.
- Identify the district SBA office and SBA Point of Contact/Business Development Specialist (name, address, phone number, and email) that the application will be submitted to for review and approval.

Award of the contract will only be made to a SBA certified 8(a) program company or SBA approved 8(a) Joint Venture.

(6) Government Property

Offerors shall have a system of internal controls to manage (control, use, preserve, protect, repair, and maintain) Government property in its possession. Section L of this solicitation contains NFS provisions 1852.245-80, "Government Property Management Information" and 1852.245-81, "List of Available Government Property." The information regarding the Offeror's Government property management procedures required by these two provisions shall be included in this volume. However, if an analysis of the Offeror's property management policies, procedures, practices, and systems has not been previously performed by the Government, the Offeror shall describe their internal processes, systems, procedures, records, and methodologies to be employed to ensure effective and efficient control of Government property under this contract in accordance with the requirements specified in FAR 52.245-1, Government Property.

(7) Subcontractor Listing

The Offeror shall provide a summary listing (by name and address) of all subcontractors (regardless of dollar value) that have been identified throughout the Offeror's proposal and the subcontract **Government Pricing Model (GPM)** value associated with each entity.

(8) Information System Security Plan

In accordance with NFS clause 1852.240-76, Deviation 25-22 at the start of phase-in, the successful contractor shall submit for NASA approval a comprehensive Information System Security Plan, or the contractor shall provide documentation of the certification of the non-federal system to the security officer of the NASA organization that owns the information (typically the organization responsible for the contract), which will be incorporated into the contract under Clause J.1 as **Attachment I**.

The information to be included in this plan is outlined in **Attachment E**, Contract Data Requirements List, which is provided for information purposes at this time and shall be used by the successful offeror to prepare their plan. The Contractor shall also submit a C-SCRM plan addressing contractor systems that will be used in performance of the contract, shall be delivered prior to the processing, transmission, or storage of non-public NASA information on these contractor systems. The C-SCRM plan shall be consistent with the recommended template in NIST SP 800-161, "ICT SCRM Plan Template," or **Enclosure 8,** Optional C-SCRM Questionnaire, which is intended to make fulfilling this requirement easier.

The OCIO will accept either a plan that complies with NIST SP 800-161 or this questionnaire. Contractors DO NOT need to submit both a plan and the questionnaire. If a contractor has an existing C-SCRM plan that complies with NIST SP 800-161, there is no requirement for the contractor to complete the OCIO questionnaire. In accordance with Attachment K, Security

Requirements for Unclassified IT Resources Data Requirements Description (DRD), the Contractor shall submit the C-SCRM plan to the ICT/C-SCRM Service Element Lead at agency-dl-ocio-cys-cp-scrm@mail.nasa.gov and copy the Contracting Officer on the email distribution.agency-dl-ocio-cys-cp-scrm@mail.nasa.gov and copy the Contracting Officer on the email distribution.

(End of Provision)

L.9 NOTICE OF POTENTIAL ORGANIZATIONAL CONFLICTS OF INTEREST (OCT 2021)

(a) The contracting officer (CO) has determined that this acquisition may give rise to an organizational conflict of interest (OCI). Accordingly, the attention of prospective offerors is invited to Federal Acquisition Regulation (FAR) Subpart 9.5 Organizational Conflicts of Interest. Offerors are required to submit an acceptable OCI Avoidance Plan in accordance with the requirements of Data Requirements Description (DRD) Organizational Conflict of Interest, Attachment J.

(b) Paragraphs (b)(1) – (3) below contain brief descriptions of each type of potential OCI and the reason it creates a concern. The Government has identified specific actual or potential conflicts related to this contract in paragraph (c) below.

(1) Unequal Access to Information: An OCI due to "unequal access to information" is created when a contractor has access to nonpublic information that may provide the firm an unfair competitive advantage to compete against other companies, likely in the context of a later competition for a future Government contract.

(2) Biased Ground Rules: An OCI due to "biased ground rules" is created when a firm, as part of its performance of a Government contract, has in some sense set the ground rules for another Government contract by, for example, writing the statement of work or the specifications. In these "biased ground rules" cases, the primary concern is that the firm could skew the future competition, whether intentionally or not, in favor of itself. These situations may also involve concerns that a firm, by virtue of its special knowledge of the agency's future requirements, would have an unfair advantage in the competition for those requirements. Thus, both principles of bias and unfair competitive advantage may be present under certain circumstances.

(3) Impaired Objectivity: An OCI due to "impaired objectivity" is created when a contractor, as part of its performance of a Government contract, has the opportunity to take action, or participate in contract activities, under circumstances where the contractor's judgment or objectivity in performing the requirements may be impaired because the contractor's actions might affect the interests of entities with which the contractor has a direct or indirect affiliation or a competitive posture. Under such circumstances, the contractor could positively impact its own interests or those of a

related/affiliated company or could negatively impact the financial interests of a competitor entity. This conflict contains two elements – the use of subjective judgment by the contractor and a direct or indirect financial interest in the outcome of performance.

Contractor activities or actions having the potential to result in an impaired objectivity OCI include the following: participating in reviewing third-party proposals; other reviewing, evaluating, analyzing or testing of services, technology concepts, designs, prototypes, software or hardware of the contractor, an affiliate, or a third party; or making recommendations or decisions that could benefit same.

(c) In addition to those OCI issues identified by the offeror, the OCI plan shall specifically address the following potential OCI issues:

(1) Unequal Access to Information: Potential types of requirements which could lead to unequal access to information OCI issues may include (but are not limited to):

There is a concern that the successful contractor or its proposed subcontractor(s), as part of their performance of a Government contract, obtains access to another contractor's proprietary, business confidential, or financial data and/or non-public information, which may provide the firm an unfair competitive advantage in a future competition. Example: The incumbent Contractor may have access to information, such as, SOWs, drawings, deliverables, (technical reports, etc.), and financial data which may give them an unfair advantage when submitting a proposal for the NRESS III procurement.

(2) Biased Ground Rules: Potential types of tasks which could lead to Biased Ground Rules OCI issues may include (but are not limited to):

Not Applicable

(3) Impaired Objectivity: Potential types of tasks which could lead to Impaired Objectivity OCI issues may include (but are not limited to):

There is a concern that the successful contractor or its proposed subcontractor(s) judgment and objectivity in performing their contract requirements may be impaired due to the fact that the substance of the contractor's performance has the potential to affect other interests of the contractor, thereby impairing the successful contractor's judgment and objectivity.

(d) The proposed OCI Plan shall be consistent with all other areas of the proposal. The proposed OCI Plan is not page limited and shall be included as a separate proposal attachment.

(End of text)

L.10 GSFC 52.215-210 MISSION SUITABILITY PROPOSAL INSTRUCTIONS (COMPETITIVE). (MAY 2022)

(a) The offeror's response to the requirements of this factor shall be submitted as a separate proposal volume.

(b) The volume shall be specific, detailed, and complete to clearly and fully demonstrate the offeror's understanding of the Mission Suitability subfactor requirements delineated in paragraph (d) below and the offeror's approach to effectively and efficiently accomplish those requirements, including full explanations of the techniques and procedures to be employed and the resources necessary to perform as proposed. Stating the offeror understands and will comply with the requirements, or paraphrasing the requirements is not acceptable. In addition, statements such as "standard procedures will be employed," or "well-known techniques will be used," are not acceptable. Information may not be incorporated by reference.

(c) The offeror shall provide, at the beginning of this volume using the table provided below, a detailed compliance matrix that cross-references the offeror's numbering structure and corresponding volume page number with all requirements associated with each subfactor delineated in paragraph (d) below. The offeror may utilize its own unique numbering structure provided the compliance matrix provides clear traceability to each of the subfactor requirements described below.

Solicitation Mission Suitability (MS) Volume Requirement	**Solicitation Section L Numbering Nomenclature**	**Offeror MS Volume Numbering Nomenclature**	**Offeror MS Volume Page Number**
Subfactor A-Technical Approach (RTO 1 & 2)	L.10 (A.1 - A.2)		
Subfactor B-Management Approach	L.10 (B.1 –B.9)		
Subfactor C-IT Requirement Analysis (RTO 3)	L.10 (C.1 - C.4)		

(d) The offeror shall provide a detailed response to each of the following subfactor requirements utilizing the structure and order as provided below:

Subfactor A – Technical Approach (RTO 1 & 2)
Subfactor B – Management Approach
Subfactor C – IT Requirement Analysis (RTO 3)

The paragraph numbering, formatting, and sub-paragraphs within the subfactors below should not be construed as any indication of priority, weighting or as any establishment of elements or lower-level criteria. The paragraph numbering is only provided for clarity, traceability, and ease of reading between Mission Suitability Sections L and M.

Subfactor A – Technical Approach (RTO 1 & 2)

A.1 Risk Identification and Management

The Offeror shall identify and describe significant potential risks associated with performance of the contract and explain the risk management techniques that will be used to address each risk. Identified risks may be inherent to the nature of the work or specific to the Offeror's proposed approach. The Offeror shall describe the methodology used to manage each identified risk throughout contract performance. At a minimum, the proposal shall address any applicable risks in the areas of technical, schedule, cost, and security (including personnel, information technology). If a listed risk area is not applicable, the Offeror shall provide a brief explanation. For each identified risk, the proposal shall include a description of the risk, the probability of occurrence, the potential impact and severity, whether the Offeror accepts the risk or will implement mitigation strategies, and a description of the proposed mitigation approach, if applicable.

A.2 RTO Task Plans

The Offeror shall provide written task plans addressing representative task orders 1 and 2, included as **Enclosure 5** and **6**. In accordance with the Task Ordering Procedure clause in Section I of this solicitation, each task plan shall identify the technical approach, labor categories, projected hours, Government interface, and the flow of activities from start to completion (including timeline). The plan must be sufficiently specific, detailed, and complete to demonstrate a clear and full understanding of the objectives; potential technical problems, risks, and critical issues; and possible problem mitigation/resolution. Any assumptions made in preparing a response to these representative task orders shall be clearly stated.

Subfactor B – Management Approach

B.1 Overall Management Approach

The Offeror shall describe its approach for managing the proposed work.

B.2 Significant Subcontractors

The Offeror shall describe its strategy for using significant subcontractors (based on the definition of significant subcontractor in the cost volume instructions). If significant subcontractors are proposed, the Offeror shall identify the interfaces between its organizational

structure and the significant subcontractors. Additionally, the proposal shall describe: the nature and extent of the work to be performed by the subcontractor, including split of responsibilities and the potential percentages of work to be performed. The Offeror shall discuss its plans for addressing any performance issues on subcontracted portions of the contract.

B.3 Management Structure

The Offeror shall discuss interrelationships of technical management, business management, and subcontract management. The proposal shall include an organizational chart that identifies where this contract fits in the corporate structure. In addition, the proposal shall contain an organizational chart for this contract identifying all managerial positions by title.

The Offeror shall provide a detailed description of the responsibilities and authorities for management of this contract, from lower levels through intermediate management to top-level management. The Offeror should include such elements as the span of control, degree of autonomy, and lines of communication. All interfaces with GSFC personnel and subcontractors must be clearly delineated.

B.4 Program Manager

The management plan shall contain an in-depth discussion of the independence and autonomy of the Program Manager, including the type and degree of support and resources that are under his/her direct control in the performance of this contract. In addition, the plan shall clearly address the Program Manager's access to corporate officials and essential resources/functions necessary to accomplish the work, including the Program Manager's authority to utilize and redirect subcontract and/or Joint Venture resources (if applicable). The plan shall also describe the process and timelines to be followed by the Program Manager in obtaining decisions beyond his/her authority and in resolving priority conflicts for resources/functions not under the Program Manager’s direct control such as personnel, finances, and facilities.

B.5 Phase-in Plan

The Offeror shall provide a detailed phase-in plan that will ensure continuity and a smooth transition with the incumbent Contractor during the **60-day** phase-in period. The phase-in plan shall clearly demonstrate an ability to assume full contract responsibility on the effective date of the contract. The phase-in plan shall also specifically address how ongoing work will be transitioned, the proposed management organization, schedule, orientation and training of personnel. If the phase-in plan assumes any dependency upon the incumbent contractor, please identify. Also, specify the extent of involvement of NASA personnel during this period. The **60-day** phase-in period will be accomplished through the issuance of a separate firm fixed-price contract vehicle. The proposed phase-in plan will become an attachment and contractual requirement for the separate phase-in contract.

B.6 Staffing

The Offeror shall provide a complete staffing approach that describes how the Offeror intends to staff this effort and how the approach will allow the Offeror to meet the requirements of this contract. The staffing approach shall include a comprehensive hiring plan which presents the expected number of personnel to be hired from incumbents, those to be transferred from within the Offeror's own organization, and those from other sources, as well as the associated strategy for achieving each aspect of the proposed hiring plan. Additionally, please provide any staffing reach-back to corporate resources or supplemental capabilities to minimize staffing disruptions throughout contract performance.

B.7 Task Order Management

Task orders will be issued in accordance with the Task Ordering Procedure clause and the Supplemental Task Ordering Procedures Clause in this solicitation. The Offeror shall detail its process for responding quickly and efficiently to requests for task plans. The Offeror shall address its plan for organizing, assigning staff, tracking, and managing task orders from task initiation to completion, including configuration control, subcontracting, schedule, and cost. The Offeror shall describe the approach for managing multiple tasks simultaneously.

B.8 Position Qualifications

Offerors shall provide written Position Qualifications for each specific labor category proposed for contract performance. As provided in Table (b)(1) of provision 52.215.201 and the Cost Volume Instructions, the Offeror's Position Qualifications are to be included in the contract Attachment entitled, "Direct Labor Rates, Indirect Rates, and Fee Matrices," which shall be submitted in the Cost Volume (per table (b)(1) of GSFC provision 52.215-201). For purposes of the Mission Suitability factor evaluation, Offerors shall address the minimum requirements of the Position Qualifications, to include necessary experience, summary of duties and responsibilities, specific requirements/licensing, minimum education and/or experience required for the position.

B.9 Total Compensation Plan

The Offeror shall provide a Total Compensation Plan (TCP) for all personnel proposed, in accordance with FAR provision 52.222-46, "Evaluation of Compensation for Professional Employees." The required TCP must: Classify all labor categories proposed as "exempt" or "non-exempt" positions. Briefly define the terms "exempt" and "non-exempt" as used by the Offeror's organization and correlate this definition with that provided for in the Code of Federal Regulations.

Identify the categories of personnel that are in a bona fide executive, administrative or professional capacity as defined by FAR 22.1102 and 29 CFR 541.

In accordance with the Exhibits 10A and 10B "Fringe Benefit Chart", the Offeror and all service subcontractors shall provide a detailed list of their fringe benefits and company estimated cost per hour, along with an itemization of the benefits that require employee contributions and the amount of that contribution as a percentage of the total cost of the benefit. Two exhibits shall be submitted, one containing the average of fringe benefit information for all the exempt labor categories and one containing the average of fringe benefit information for all the non-exempt labor categories. (The Mission Suitability Volume must not include Exhibits 10A and 10B but should reference where the information appears in the Cost Volume.)

Provide supporting data, such as recognized national, regional, and local compensation surveys and studies of professional, public and private organizations, used in establishing the total professional compensation structure.

Subfactor C – IT Requirements Analysis (RTO 3)

C.1 RTO 3 Staffing

The Offeror shall provide a detailed description of its approach for implementing and staffing RTO 3, as outlined in Enclosure 7. In accordance with the Task Ordering Procedure clause in Section I of this solicitation, the Offeror must include a clear technical approach that addresses the specific requirements of the task order. This should encompass the identification of labor categories, projected hours, and a staffing strategy aligned with the technical approach. Additionally, the Offeror must describe the government interface and outline the flow of activities from start to completion, including a timeline. The schedule for completing the effort must include key milestones and objectives. The Offeror should also identify any facilities, equipment, and other resources necessary to successfully accomplish the task. Furthermore, the Offeror must explain any proposed efficiencies, innovative methods, techniques, or technologies, and their impact on the performance of RTO 3. Any assumptions made in preparing the response should be clearly stated. The Offeror is required to provide a chart or table showing the proposed staffing for RTO 3, organized by labor category, and identify available personnel from the prime contractor or team members, consistent with the technical approach. The Offeror must also explain how it will determine the optimal skill mix based on the RTO's requirements and how this mix aligns with the services and functions to be performed.

C.2 RTO 3 Risks

The Offeror shall identify significant risks associated with RTO 3. The Offeror must address the risks related to migrating to a second-generation NSPIRES system, and it is also responsible for identifying any other risks. For each identified risk, the Offeror must provide a management approach that includes an assessment of the probability, impact, severity, and a strategy for risk acceptance or mitigation.

C.3 Managing/Migration of Legacy System Data

The Offeror shall describe its approach to managing the changeover and migration of legacy system data, including how it will ensure ongoing compliance, service availability, and security requirements. This approach should include a plan for collaboration with NASA Officials, including NSPIRES stakeholders.

C.4 IT Support for Panelist

The Offeror must provide a detailed plan for using software tools and IT solutions to manage panelists, including approaches for expertise matching, recruitment, and tracking past peer-review performance.

(End of text)

L.11 GSFC 52.215-223 COST VOLUME INSTRUCTIONS. (JAN 2025)

The Federal Acquisition Regulation (FAR) requires Contracting Officers to purchase supplies and services from responsible sources at fair and reasonable prices. It is expected that adequate price competition will be obtained under this solicitation so that submission of certified cost or pricing data is not required pursuant to FAR 52.215-20, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data--Alternate IV. The term “data other than certified cost or pricing data” is defined at FAR 2.101.

(a) Instructions

While these proposals are not required to be cost certified, they are to be in sufficient detail to allow direct and indirect rate verification and audit of selected costs. The Cost Volume proposal should be prepared in a manner consistent with your current accounting system.

The required format for other than certified cost or pricing data is for evaluation purposes. The cost for any resultant contract will be awarded on the basis of the successful Offeror's normal estimating and/or accounting system or the system set forth in the CAS Disclosure Statement required by Public Law 100-679, if applicable. If the Offeror's estimating and/or accounting practice differs from the required cost proposal format, the costs should be computed in accordance with the Offeror’s normal accounting and estimating procedures and the cost captured in accordance with the required format, with explanations for how the cost would be calculated and identified in accordance with the offeror’s normal estimating and/or accounting system.

Direct labor must be estimated on the basis of productive effort. Productive effort is the estimated number of hours required to perform the work. Vacations, holidays, sick leave, and any other paid absences shall not be cited as direct labor but shall be separately identified, priced, and included in an indirect expense pool.

Final monetary extensions in the Cost Volume proposal should be expressed as the closest whole dollar amount, with cents omitted.

Duty charges, if any shall be included in the cost, regardless of whether or not duty free certificates are obtained.

A "subcontract" is any contract, purchase order, material order, interorganizational transfer, etc. that is a direct cost to this acquisition. The Offeror shall provide sufficient detail to support and explain all costs proposed. For the purposes of the Cost Volume, a Significant Subcontractor is defined as any subcontractor whose estimated value meets or exceed 10% of the total GPM estimated value (basic and all options combined, if applicable). All values are inclusive of fee, but exclusive of any Phase-in.

A proposed Significant Subcontractor shall complete and submit **Exhibits 2A, 2B**, and **4** through **11** and provide the same supporting information that is requested from the Prime Offeror. Significant Subcontractors may submit proprietary cost data, under separate cover, directly to the Government no later than the date and time specified in the instructions for receipt of proposals for this RFP. Non-Significant Subcontractors shall complete and submit **Exhibit 2C** and, if applicable**, Exhibits 2D**, **10A** and **10B**, which should be included with the Prime Offeror's Cost Volume proposal. However, Non-Significant Subcontractors may submit **Exhibits 2C, 2D, 10A** and **10B**, if deemed proprietary cost data, under separate cover directly to the Government no later than the date and time specified in the instructions for receipt of proposals for this RFP.

All pricing and estimating techniques shall be clearly explained in detail (projections, rates, ratios, percentages, factors, etc.) and shall support the proposed costs in such a manner that audit, computation, and verification can be accomplished. All past actuals shall show the periods of time and costs in detail when used as a basis for estimating the proposed costs.

In order to establish the reasonableness and realism of the proposed costs, and the extent to which costs reflect performance addressed in the Mission Suitability Volume proposal, each Offeror, including proposed significant and non-significant subcontractors, may be requested to submit the required other than certified cost or pricing data (exhibits and supporting narrative) set forth in this provision. These data requirements differ by prime offeror, significant subcontractors, and non-significant subcontractors, as indicated in Section (b) below.

(b) Cost Volume Proposal Format

(1) <u>DIRECT AND INDIRECT RATE SUBSTANTIATION</u>

Any Offeror proposing to use the incumbent workforce should review the incumbent labor rates provided in **Enclosure 1, Contract Historical Data-Incumbent**, for those labor categories for which rates are provided, in order to better understand salary levels of the incumbent workforce. If the Offeror proposes direct labor rates for incumbent personnel that are lower than these provided rates, the Offeror should explain how they intend to attract and retain incumbent staff

based on its Total Compensation Plan. Failure to provide supporting rationale for lower direct labor rates may result in cost realism adjustments to your proposal due to the application of rates the Government deems more reasonable, realistic. For labor categories for which no incumbent labor rates were provided or for those labor categories to be filled with other than incumbent labor, provide the basis for the direct labor rates proposed. If salary surveys were used as the basis for the direct labor rates, provide a summarization of all salary surveys used, including the name, date of survey, geography, survey labor categories, survey percentiles, and survey salaries. If proposing a salary lower than the median, the offeror must identify the median, provide a rationale and include copies of the survey data used with clear identification of rates, percentiles, and other relevant data.

Indicate how you have computed and applied your indirect cost rates, including cost breakdowns. Show numerical trends and budgetary data to provide a basis for evaluating the reasonableness of pool costs and base projections. It is important that rate pool components are clearly defined and reasonably estimated, that projections regarding future sales are fully supported and are reasonable in their estimation, and that completed/expiring contracts are properly accounted for as reductions in the business base projections. As such, provide a detailed narrative explaining the basis of the indirect rate derivation, describing the types of costs accumulated for the specific rate pool and their estimation rationale, and the methodology for the projected base of application. Also provide the actual indirect rates realized for the last three contractor fiscal years, annotating if the rate is audited or unaudited. The further your proposed rates depart from established, historical indirect rates, the more essential it is that the proposal thoroughly addresses and justifies the basis for the changes in your proposed rates. Failure to provide this justification may result in cost realism adjustments to your proposal due to the application of rates the Government deems more reasonable, realistic (e.g., historical rates as charged under existing contracts or as supplied by cognizant audit and administrative agencies).

The escalation proposed for labor must be stated along with the actual escalation experienced in the last three years. Provide a statement of rationale, including the derivation, for the proposed escalation rates. If escalation is not proposed, explain why. The Offeror shall also discuss the rationale for any escalation proposed for the other cost elements. The Offeror shall also include the company's escalation history for each other cost element experienced in the past three years.

The Offeror shall clearly identify and list any cost items that will be routinely direct charged as an Other Direct Cost in all task orders. The supporting rationale associated with these proposed ODC expenses shall also be submitted.

The Government does not intend to issue a separate task order for overall contract program management. Accordingly, in accordance with the Offeror's current accounting system, clearly indicate how program management costs will be captured and charged on a task-by-task basis during performance of the contract.

(2) <u>DIRECT LABOR RATES, INDIRECT RATES AND FEE MATRICES</u>

Prime Offerors shall complete **Attachment B, DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES**, for each Contract Year (CY). The direct labor and indirect rates and fee percentages included in **Attachment B** are "not to exceed" bid rates. (Note: this "not to exceed" designation does not apply to the reimbursement of actual costs in task performance, but only to the pricing of task estimates and the negotiation of task values). During contract performance, Offerors will be permitted to offer costs for task orders to be placed at lower rates/fees than are listed in these matrices in accordance with **the "Task Ordering Procedure" and "Supplemental Task Ordering Procedures"** clauses of this contract. The direct labor categories proposed must reflect all labor categories and levels within each individual labor category anticipated to perform the requirements of the Statement of Work and should range from entry level to the most senior level.

In **Attachment B**, the Prime Offeror shall propose, by Contract Year, unburdened direct labor rates for all labor categories in Section 1; all rates or factors for Cost Estimating Relationships in Section 2; and all individual bid indirect rates in Section 3 Offsite rates. Offsite is defined as the Contractor's facility. The Offeror's fee percentage(s) included in Section 4 of the matrices shall be used to calculate the fixed fee for performing all task orders issued under the resultant contract. In Section 5, the Prime Offeror shall include a fully-loaded direct labor rate matrices for each Significant Subcontractor. In Section 6, provide Position Qualifications (PQs) for **all** Prime Offeror proposed direct labor categories specified in Section 1 and **all** Significant Subcontractors' proposed direct labor categories specified in Section 5. Please note the Prime and Significant Subcontractor(s) are to insert company-specific PQs in Section 6. These should not be the GPM-specified Non-Management DL Position Descriptions (which are provided for GPM conversion and evaluation purposes only) **if** the Prime and/or subcontractor(s) are proposing to utilize their own, existing company-specific direct labor category titles and PQs. However, the Prime and/or subcontractor(s) may propose direct labor category titles and PQs that match the GPM-Specified direct labor category titles and position descriptions **if** the Prime and/or subcontractors are establishing new, identical direct labor category titles and PQs within their company for this specific contract effort (versus utilizing their own, existing company-specific direct labor categories and PQs and converting/mapping their categories to the GPM-Specified direct labor categories in **Exhibits 2A** or **2C**). In either case, the Offeror shall insert a PQ in Section 6 for each individual direct labor category listed in Sections 1 and 5.

The Prime Offerors' and Significant Subcontractors' individual direct labor categories/rates and indirect rates used in **Exhibit 2A** to derive the loaded GPM-Specified Non-Management Direct Labor Category Rates (for **Exhibit 1A**) must match those proposed in **Attachment B DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES.** Also, the Prime Offerors' and Significant Subcontractors' individual direct labor categories/rates and indirect rates used in **Exhibit 2B** must match those proposed in **Attachment B DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES**.

(3) GOVERNMENT PRICING MODEL (GPM)

To be completed by the Prime Offeror ONLY

Enclosure 3, **GPM-Specified Non-Management Direct Labor Categories, Direct Labor Hours and Position Descriptions**, contains the individual GPM-Specified Non-Management Direct Labor Categories, their respective Direct Labor Hours by each site location (Offsite) and Contract Year, and Position Descriptions that the Government considers essential to perform task orders under this contract. The Prime Offeror ***ONLY*** shall complete **Exhibit 1A**, **Government Pricing Model**, for each Contract Year. **The Prime Offeror shall include in Exhibits 1A** and **1B *all* Subcontractors expected to perform under this contract.** The Prime Offeror shall complete **Exhibit 1A** in accordance with the following:

- At the top of **Exhibit 1A**, the Prime Offeror shall insert the Prime Offeror loadings (bid indirect rate(s) and/or fee(s) in **Exhibit 1A** that will be applied to the Subcontractor(s) GPM-Specified Non-Management Direct Labor Loaded Rates in accordance with the Prime Offeror's current accounting system. Specify the Element of Cost (e.g., Material Handling and/or G&A and/or Fixed Fee) and the proposed Contract Year rate for each Element of Cost (indirect rates must match the respective Contract Year indirect rates in **Exhibit 5**).

- In **Exhibit 1A**, the Prime Offeror shall insert the GPM-Specified Non-Management Direct Labor Categories and respective Direct Labor Hours for **each** individual category from **Enclosure 3** into the applicable site location tables within **Exhibit 1A (**i.e., Onsite, Offsite, and Manufacturing Site). The **Exhibit 1A** individual GPM-Specified Non-Management Direct Labor Categories and respective Direct Labor Hours shall be populated from **Enclosure 3** shall **not** be changed.

- In **Exhibit 1A**, the Prime Offeror shall insert the Prime Loaded Rate and/or Subcontractor Loaded Rate(s) for **each** respective GPM-Specified Non-Management Direct Labor Category into the respective categories. These loaded rates must match the Loaded GPM-Specified Non-Management Direct Labor Rates from the Prime and all Significant Subcontractors in the **Exhibit 2A** workbooks and all Non-Significant Subcontractors in the **Exhibit 2C** workbooks. The Prime Offeror may modify **Exhibit 1A** to delete or add additional Subcontractor columns, if necessary.

- Using the respective Prime Offeror loadings specified at the top of **Exhibit 1A**, the Prime Offeror shall calculate and insert the "Sub Loaded Rate w/Prime Loading" rates for each Subcontractor by GPM-Specified Non-Management Direct Labor Category. For example, if the Subcontractor's Loaded Rate is $100 and the Prime Offeror's bid loadings are G&A at 10% and Fixed Fee at 8%, the Sub Loaded Rate w/Prime Bid Loadings rate will be $118.80 [($100 * 110%) * 108%].

- For each GPM-Specified Non-Management Direct Labor Category in **Exhibit 1A**, the Prime Offeror shall insert the percentage of anticipated effort to be performed by the Prime and/or each Subcontractor. The Prime plus all Subcontractors Percent of

Effort **must** total 100% for **each** GPM-Specified Non-Management Direct Labor Category.

- The Prime Offeror shall then add the results of multiplying the respective Percent of Effort against the Prime Loaded Rate and each Sub Loaded Rate w/Prime Loading Rate(s) to derive at the Total Composite GPM-Specified (Prime/Sub) Non-Management Loaded Rate for **each and every** GPM-Specified Non-Management Direct Labor Category in **Exhibit 1A**.

- The Total Composite GPM-Specified (Prime/Sub) Non-Management Loaded Rates in **Exhibit 1A** for **each** GPM-Specified Contract Non-Management Direct Labor Category shall be multiplied against the respective GPM estimated direct labor hours for each GPM-Specified Non-Management Direct Labor category set forth in **Exhibit 1A** to derive the Total GPM-Specified Non-Management Direct Labor Costs for each Category plus the overall Subtotal GPM-Specified Non-Management Direct Labor Costs. There **must** be a composite rate totaling 100% for **each and every** GPM-Specified Non-Management Direct Labor Category in **Exhibit 1A**. In addition, the GPM estimated non-management direct labor provided for each labor category in **Exhibit 1A** (populated from **Enclosure 3**) shall **not** be changed.

- The **Exhibit 1A** individual GPM-Specified Non-Management Direct Labor Categories and respective Direct Labor Hours, populated from **Enclosure 3**, are based on a 40-hour work week with no uncompensated overtime.

- The Prime Offeror shall complete the Offeror Management and Administrative Hours/Costs Section of **Exhibit 1A**, filling in all anticipated program management and administrative support required for this effort and direct charged via Offeror (and/or subcontractor, if applicable) labor categories and hours (**Exhibits 2B** and **2D**) in addition to any labor-oriented recurring other direct costs (ODCs) and/or cost estimating relationships (CERs) consistent with **Exhibit 7**. The Prime Offeror shall then add all of the management and administrative proposed labor costs and labor-oriented recurring ODCs/CERs to derive the Subtotal Offeror Management/Administrative Labor Costs. For evaluation purposes, all Management and Administration Labor Costs shall be assumed Offsite.

- The Prime Offeror shall complete the Offeror Non-Labor Recurring ODCs and/or Cost-Estimating Relationship Costs Section of **Exhibit 1A**, filling in all Non-labor recurring other direct costs (ODCs) and/or cost estimating relationships (CERs) consistent with **Exhibit 7**. The Prime Offeror shall include the rate, how it was applied at a contract level, any further loadings and fee applied, and the resulting cost. The **Exhibit 1A** columns and formatting may be adjusted in this area as necessary to achieve clarity. The Prime Offeror shall then add all of the non-labor-oriented recurring ODCs/CERs to derive the Subtotal Offeror Non-Labor Recurring ODCs and Costs Estimating Relationship Costs.

- The Prime Offeror shall complete **Exhibit 1B, Summary of Government Pricing Model (GPM)**. The Grand Total Government Pricing Model value is a summation of the Subtotal GPM-Specified Non-Management Direct Labor Costs (Offsite); the Subtotal Offeror Labor-oriented Management and Administrative Costs; and Subtotal Non-Labor Recurring ODCs and Cost Estimating Relationship Costs in **Exhibit 1A**.

(4) NON-MANAGEMENT DIRECT LABOR CATEGORY CONVERSION

Prime Offerors and all Significant Subcontractors included in **Exhibit 1A** shall complete **Exhibit 2A, Non-Management Direct Labor Category Conversion**. This exhibit shows how the Prime Offeror's and Significant Subcontractors' individual direct labor categories/rates are proportioned and converted to the GPM-Specified Non-Management Direct Labor Categories. **Exhibit 2A** summarizes the unburdened direct labor rates, bid indirect rates, and fee rate used to derive each Loaded GPM-Specified Non-Management Direct Labor Category Rate used in **Exhibit 1A**. Prime Offerors and all Significant Subcontractors shall complete a separate **Exhibit 2A** for each performance site (Offsite) for which they are providing GPM-Specified Non-Management Direct Labor using the applicable bid rates for each site. The Offerors' and Significant Subcontractors' individual direct labor categories/rates and indirect rates used in **Exhibit 2A** to derive the loaded GPM-Specified Non-Management Direct Labor Category Rates (for **Exhibit 1A**) must match those proposed in **Attachment B DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES.** When completing this **Exhibit 2B**, Prime Offerors and Significant Subcontractors must specify the applicable site (Offsite) and provide rates only for those labor categories specified in **Exhibit 1A** for the site indicated. (For instance, Prime Offerors and Significant Subcontractors should only propose a rate for the Administrative Specialist IV in the **Exhibit 2A** designated Offsite since no "Onsite" or "Manufacturing Site" hours are specified for this position.)

All Non-Significant Subcontractors included in **Exhibit 1A** shall complete **Exhibit 2C, Non-Significant Subcontractor Non-Management Direct Labor Category Conversion**. This exhibit shows how the Non-Significant Subcontractors' individual direct labor categories/rates are proportioned and converted to the GPM-Specified Non-Management Direct Labor Categories. **Exhibit 2C** summarizes the fully-burdened subcontractor direct labor rates used to derive each Loaded Non-Significant Subcontractor GPM-Specified Non-Management Direct Labor Category Rate used in **Exhibit 1A**. All Non-Significant Subcontractors shall complete a separate **Exhibit 2C** for each performance site (Offsite) for which they are providing GPM-Specified Non-Management Direct Labor using the applicable bid rates for each site. When completing this **Exhibit 2C**, Non-Significant Subcontractors must specify the applicable site (Offsite) and provide rates only for those labor categories specified in **Exhibit 1A** for the site indicated. (For instance, Non-Significant Subcontractors should only propose a rate for the Administrative Specialist IV in the **Exhibit 2C** designated "Offsite" since no "Onsite" or "Manufacturing Site" hours are specified for this position.)

For each GPM-Specified Non-Management Direct Labor Category, a composite rate can be comprised of no more than 3 labor categories. If a composite rate is comprised of 2 or more labor categories, the composite rate shall not contain any labor category with less than 30**%** of anticipated effort.

Please note that sample exhibits have been provided for completing **Exhibits 2A** and **2C**. These sample exhibits shall not be included in the Offeror's Cost Volume proposal submission.

(5) OFFEROR MANAGEMENT AND ADMINISTRATIVE LABOR

All Prime Offerors must complete and submit **Exhibit 2B**, **Offeror Management and Administrative Labor**, for all Prime Offeror proposed management and/or administrative labor categories included in **Exhibit 1A.** If any Significant Subcontractor management and/or administrative labor categories are also proposed in **Exhibit 1A**, the respective Significant Subcontractor shall also complete and submit **Exhibit 2B**. The Prime Offerors' and Significant Subcontractors' individual direct labor categories/rates and indirect rates used in **Exhibit 2B** must match those proposed in **Attachment B DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES.** The Loaded Management and Administrative Bid Labor Rates derived in **Exhibit 2B** must match the Prime Offeror and/or Significant Subcontractor Loaded Management and Administrative Bid Labor Rates used in **Exhibit 1A**.

If any Non-Significant Subcontractor management and/or administrative labor categories are also proposed in **Exhibit 1A**, the respective Non-Significant Subcontractor shall complete and submit **Exhibit 2D, Non-Significant Subcontractor Offeror Management and Administrative Labor**. The Loaded Management and Administrative Bid Labor Rates derived in **Exhibit 2D** must match the Non-Significant Subcontractor Loaded Management and Administrative Bid Labor Rates used in **Exhibit 1A.**

For **Exhibits 2B** and **2D**, all Offerors shall note that **all** Management and Administrative labor categories shall be proposed using Offsite rates.

(6) GOVERNMENT PRICING MODEL EXPRESSED IN ELEMENTS OF COST

All Prime Offerors shall complete **Exhibit 3**, **Government Pricing Model by Elements of Cost**, to include Direct Labor Hours, Direct Labor Dollars, Fringe Benefits (if separate), Overhead, Other Direct Costs, G&A and fixed fee. The Grand Total of **Exhibit 3** shall match the GPM Grand Total of **Exhibit 1B**. Offerors may adjust the elements of cost to be consistent with your current accounting system.

(7) GPM BASIS OF ESTIMATES (BOE)

At the contract level, the Offerors shall give the Government insight into the cost estimating thought processes and methodologies used by the Offeror in estimating the Program

Management and Administrative Support and subcontracting. Emphasis should be placed on a description of the cost estimating processes and methodologies themselves, and how these relate to the technical approach described in the proposal.

For Program Management and Administrative Support, explain in detail how it is estimated. If direct, explain the estimating approach and assumptions (direct labor rates, hours per year, percentage of direct labor hours or costs, etc.). If indirect, identify the indirect rate pool that supports each function.

Describe how subcontracts were estimated and how determined reasonable. Please note if you have experience with the proposed subcontractor(s), if utilized. For any significant subcontract that has a potential estimated value in excess of the threshold stated in Section (a) instructions above, BOEs must be provided by that significant subcontract following the above specified format and shall comply with the BOE page limitations set forth in the **"Proposal Preparation—General Instructions"** provision of this RFP.

(8) CONTRACT SOURCE OF PERSONNEL

Exhibit 4 shows the Offeror's plans to obtain the required personnel at the contract level. The Offeror shall show the total number of staff proposed for each position, how many are available from within the company, how many are expected to be hired from the incumbent contract workforce, and how many will be newly hired. This data is to be provided for the first GPM Contract Year only.

(9) SUMMARY OF INDIRECT RATES

Exhibit 5 summarizes the Contractor Fiscal Year to Contract Year conversion for Overhead, G&A, and any "Other" indirect rates that the Offeror proposes in accordance with their current accounting system. Please note that the Contract Year Composite indirect rates shall match the rates proposed in **Section 3** of **Attachment B**, **DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES.**

(10) INDIRECT RATE EXPENSE POOLS:

Exhibit 6A Overhead Expense Pool

Exhibit 6A shows the details of the expenses in the overhead pool by Contractor Fiscal Year. If fringe benefits are included in a separate pool, provide a separate exhibit entitled, "Fringe Benefit Pool". This exhibit shows the actual expenses for the prior three years and projected expenses through the life of the contract. This exhibit also shows the conversion of the overhead rate from the Contractor Fiscal Year to Contract Year. **NOTE:** If a Small Business Administration Joint Venture (JV) or other Prime Offeror teaming arrangement is proposed, the actual expenses for the prior three years of both entities that comprise the JV or teaming arrangement must be provided in this exhibit; this portion cannot be left blank.

If more than one overhead pool is proposed, a separate **Exhibit 6A** shall be included for each pool. Include the rationale for multiple overhead pools. Examples of types of overhead expense pools include: Material Overhead, Manufacturing Overhead, Engineering Overhead, Field Service Overhead, Site Overhead.

Below are examples of typical costs found in an Overhead Expense Pool:

Material Overhead:

Acquisition (purchasing); inbound transportation; indirect labor; employee-related expenses (e.g., shift and overtime premiums, employee taxes, fringe benefits, etc.); receiving and inspection; material handling and storage; vendor quality assurance; scrap sales credits; inventory adjustments, etc.

Operations Overhead (e.g., Manufacturing, Engineering, Field Service, and Site Operations):

Indirect labor and supervision; perishable tooling (primarily in manufacturing overhead); employee-related expenses (e.g., shift and overtime premiums, employee taxes, fringe benefits, etc.); indirect material and supplies (e.g., small tools, grinding wheels, lubricating oils, etc.); fixed charges (e.g., depreciation, insurance, rent, property taxes, etc.); downtime of direct employees when not working on a specific contract (e.g., training, vacation pay, regular pay, sick leave pay, etc.); etc.

Offerors shall include within their proposal any Forward Pricing Proposal (FPRP), Forward Pricing Rate Recommendation (FPRR), or Forward Pricing Rate Agreements (FPRA), with the Offeror's Cognizant Agency. If an FPRA is in place, the Offeror's agreement shall be the basis for proposed rates and a copy of the FPRA shall be provided with the proposal, in support of all rates. Any differences between the FPRA and the rates utilized shall be explained. If an FPRA is not in effect, the Offeror shall provide the basis for the indirect rates proposed, to include three years of historical indirect rate data in the applicable tab within the forms.

Exhibit 6B General and Administrative (G&A) Expense Pool

Exhibit 6B shows the details of the expenses in the G&A pool by Contractor Fiscal Year. This exhibit shows the actual expenses for the prior three years and projected expenses through the life of the contract. This exhibit also shows the conversion of the G&A rate from the Contractor Fiscal Year to Contract Year. **NOTE:** If a Small Business Administration Joint Venture (JV) or other Prime Offeror teaming arrangement is proposed, the actual expenses for the prior three years of both entities that comprise the JV or teaming arrangement must be provided in this exhibit; this portion cannot be left blank.

If more than one G&A pool is proposed, a separate **Exhibit 6B** shall be included for each pool. Include the rationale for multiple G&A pools. G&A expenses are management, financial, and

other expenses related to the general management and administration of the business unit as a whole. To be considered a G&A expense of a business unit, the expenditure must be incurred by, or allocated to, the general business unit.

Below are examples of typical costs found in a G&A Expense Pool:

- Salary and other costs of the executive staff of the corporate or home office
- Salary and other costs of staff services such as legal, accounting, public relations, and financial offices
- Selling and marketing expenses
- Corporate or home office expenses
- Independent Research and Development (IR&D)
- Bid and Proposal (B&P)
- Other miscellaneous activities related to overall business operation

If the rates are negotiated forward pricing rates, furnish date of negotiation and with whom negotiated. If not negotiated, furnish explanation and basis of rates.

Exhibit 6C Fringe Expense Pool

Exhibit 6C shows the details of the expenses in the fringe pool by Contractor Fiscal Year. This exhibit shows the actual expenses for the prior three years and projected expenses through the life of the contract. This exhibit also shows the conversion of the fringe rate from the Contractor Fiscal Year to Contract Year. **NOTE:** If a Small Business Administration Joint Venture (JV) or other Prime Offeror teaming arrangement is proposed, the actual expenses for the prior three years of both entities that comprise the JV or teaming arrangement must be provided in this exhibit; this portion cannot be left blank.

If more than one fringe pool is proposed, a separate **Exhibit 6C** shall be included for each pool. Include the rationale for multiple fringe pools. Examples of types of fringe expense pools include: Life Insurance, Work's Comp, Holiday, 401k Contribution, etc.

Offerors shall include within their proposal any Forward Pricing Proposal (FPRP), Forward Pricing Rate Recommendation (FPRR), or Forward Pricing Rate Agreements (FPRA), with the Offeror's Cognizant Agency. If an FPRA is in place, the Offeror's agreement shall be the basis for proposed rates and a copy of the FPRA shall be provided with the proposal, in support of all rates. Any differences between the FPRA and the rates utilized shall be explained. If an FPRA is not in effect, the Offeror shall provide the basis for the indirect rates proposed, to include three years of historical indirect rate data in the applicable tab within the forms.

(11) SUMMARY OF RECURRING OTHER DIRECT COSTS (ODCs)/COST ESTIMATING RELATIONSHIPS (CERs)

Offerors shall complete **Exhibit 7** for any recurring ODCs (e.g. computer usage, program management, depreciation, administrative support, etc.) routinely bid on an established Cost Estimating Relationship (CER) in accordance with your current accounting system. In this exhibit, the Offerors shall show the percentage, rate, and/or dollar amount used, as well as, a detailed explanation of the basis of application and estimating approaches and assumptions. Please note that any Recurring ODCs and CERs listed in **Exhibit 7** must match those proposed in **Section 2** of **Attachment B, DIRECT LABOR RATES, INDIRECT RATES, AND FEE MATRICES.**

The following GPM-Specified ODCs are the Government's best estimate of the unburdened ODCs that may be required to perform Task Orders under this contract by CY.

	CY1	CY2	CY3	CY4	CY5	CY6
NSPIRES Hardware Servers	$ 280,322.06	$ 280,322.06	$ 280,322.06	$ 280,322.06	$ 280,322.08	$ 140,161.04
One-time Refresh Allocation of hardware servers	$ 185,000.00	$ 185,000.00	$ 185,000.00	$ 185,000.00	$ 185,000.00	$ 92,500.00
Event Logistics	$6,410,774.46	$6,410,774.46	$6,410,774.46	$6,410,774.46	$6,410,774.46	$3,205,387.23
Event IT Support	$1,526,400.00	$1,526,400.00	$1,526,400.00	$1,526,400.00	$1,526,400.00	$ 763,200.00
Honoraria Payments	$4,200,000.00	$4,200,000.00	$4,200,000.00	$4,200,000.00	$4,200,000.00	$2,100,000.00
NSPIRES Yearly Software Licenses	$ 234,000.00	$ 234,000.00	$ 234,000.00	$ 234,000.00	$ 234,000.00	$ 117,000.00
One-time Refresh Allocation of Software Licenses	$ 925,000.00	$ 925,000.00	$ 925,000.00	$ 925,000.00	$ 925,000.00	$ 462,500.00
NSPIRES Hosting	$ 132,000.00	$ 132,000.00	$ 132,000.00	$ 132,000.00	$ 132,000.00	$ 66,000.00
NRESS Off-Site Facilities	$1,605,000.00	$1,605,000.00	$1,605,000.00	$1,605,000.00	$1,605,000.00	$ 802,500.00

The Prime Offeror shall insert the above **unburdened** GPM-Specified Other Direct Costs (ODCs) into **Exhibit 1B** and complete an **Exhibit 1B, Prime Offeror Loadings on GPM-Specified Other Direct Costs** for each Contract Year. The Prime Offeror shall insert the Prime Offeror loadings (bid indirect rate(s) and/or fee(s)) in **Exhibit 1B** that will be applied against the GPM-Specified Other Direct Costs (ODCs) estimates, in accordance with the Prime Offeror's current accounting system, to calculate the Prime Offeror Loaded ODC Costs for each Contract Year. If any proposed cost exceeds the estimated unburdened GPM-Specified ODCs provided above, the Prime Offeror shall include a detailed rationale justifying the variance. If any recurring ODCs are included in your indirect expenses, DO NOT remove them from your indirect pools and include them in this exhibit. If you do not have any established CERs, insert "NONE" in this exhibit.

(12) PHASE-IN PLAN

Offerors shall propose the total firm-fixed-price associated with the **60**-day phase-in period, which will be performed under a separate, firm-fixed-price order. **Exhibits 8** and **8A** shall be used to state the proposed price for the phase-in, which is expected to commence on or about **October 1, 2026**.

(13) PRODUCTIVE WORK YEAR CALCULATIONS

Exhibit 9 summarizes the Offeror's productive work year calculation. If exempt and non-exempt employees are proposed, separate exhibits must be provided for each classification.

(14) FRINGE BENEFITS EXHIBITS (Total Compensation Plan)

As addressed in the Mission Suitability Volume Instructions provision Subfactor B, Management Approach the Offeror and all Significant and Non-Significant service subcontractors shall provide a detailed list of their fringe benefits and company estimated cost per hour, along with an itemization of the benefits that require employee contributions and the amount of that contribution as a percentage of the total cost of the benefits. Two exhibits shall be submitted, in Exhibits 10A containing the average of fringe benefit information for all the exempt labor categories, and Exhibit 10B containing the average of fringe benefit information for all the non-exempt labor categories. These exhibits fulfill the Total Compensation Plan requirement under FAR provision 52.222-46 for Non-Significant Subcontractors.

(15) COGNIZANT AGENCY INFORMATION

Offerors shall complete **Exhibits 11A** and **11B** and provide the requested information necessary to contact appropriate audit authorities regarding the Offeror's business systems, status of financial disclosures, negotiated forward pricing rates, etc. Offerors shall provide a copy of the current forward pricing rate agreement. Offerors must ensure that the information provide is current and accurate.

(End of provision)

L.12 GSFC 52.215-230 PAST PERFORMANCE VOLUME. (FEB 2025)

An Offeror's past performance record indicates the relevant quantitative and qualitative aspects of performing services or delivering products similar in size and content to the requirements of this acquisition.

The Offeror shall provide, at a minimum, the following information in support of its proposal to facilitate the evaluation of the Offeror's past performance as related to the requirements of the proposed contract.

(a) *INFORMATION FROM THE OFFEROR*

Prime Offerors shall furnish the information requested below for all of your most recent contracts (completed and ongoing) for similar efforts with a minimum average annual cost/fee incurred of $7M that your company has had within the last 5 years of the RFP release date.

Joint Venture (JV) prime Offerors should provide at least one of the past performances referenced contracts required above in the name of the JV. If the JV is newly established and

cannot provide past performance referenced contracts in the name of the JV, then past performance referenced contracts from individual prime partners of the JV should be submitted for consideration, with at least one of the JV past performance references from each JV partner. For the purposes of the Past Performance Volume, a protégé prime partner proposed as part of a mentor protégé prime JV, shall follow the instructions for a significant subcontractor in this provision.

A proposed significant subcontractor for the past performance volume is defined as any proposed subcontractor that is estimated to meet/exceed an average annual cost/fee of $7M. Note, the definition of significant subcontractor for the past performance evaluation may be different than for the cost evaluation. The Offeror shall provide the information requested below for any significant subcontractor(s) for those similar efforts within the last 5 years of the RFP release date with a minimum average annual cost/fee incurred of at least 10% of the estimated average annual dollar value of the proposed significant subcontract.

For example (note, these example numbers may not relate to this specific procurement), if a procurement is valued at an average annual value of $50M and a proposed significant subcontractor for the effort has a proposed average annual cost/fee of $16M, the Offeror shall provide relevant current/past contract references that have a minimum average annual cost/fee incurred at/above $1.6M (10% of $16M) for that significant subcontractor.

If a prime Offeror or significant subcontractor is submitting past performance data on a current/past contract vehicle that includes multiple tasks, orders, etc, all effort under that contract vehicle may be consolidated for the purposes of meeting the average annual cost/fee incurred in the instructions above and for the purpose of evaluating contract relevance for the proposed requirement.

The Offeror shall provide an estimated value and percentage of work to be performed on this contract by the Prime Offeror and each significant subcontractor. Indicate the primary functions SOW to be performed by the Prime Offeror and each proposed significant subcontractor. Indicate which contracts are most related (i.e. similar in size and content) and how they are related to the proposed effort, as well as which contracts were performed by the division of your company (if applicable) that will perform the proposed contract/subcontract.

If applicable, Offerors may provide the experience or past performance of a parent or affiliated or predecessor company to an Offeror (including Joint Venture prime partner companies and/or a parent or affiliated company that is being otherwise proposed as a subcontractor on this effort) where the firm's proposal demonstrates that the resources of the parent or affiliate or predecessor will affect the performance of the Offeror. The Offeror shall demonstrate that the resources of the parent or affiliate or predecessor company (its workforce, management, facilities or other resources) shall be provided or relied upon for contract performance such that the parent or affiliate or predecessor will have meaningful involvement in contract performance.

The Offeror shall provide the following information on all past/current contract references that meet the above criteria for the Prime Offeror and each significant subcontractor:

- Customer's name, E-mail address, and telephone number of both the lead contractual and technical personnel most familiar with the Offeror's performance record. *(Please verify the information provided is current and correct)*.

- Cage Code and/or DUNS Number of the contractor performing the work.

- Contract number, type, and total original and present or final contract value.

- The current contract expenditures incurred to date, the date in which the expenditures have been incurred through, and the Average Annual Cost/Fee Incurred to Date. For example (note, these example numbers may not relate to this specific procurement):

A current five-year contract that you are performing has a total estimated value of $100,000,000. As of the latest cost report which reflected cost/fee through the first 2 years and 4 months of performance, the total amount of cost/fee incurred by the Offeror over the duration of the contract was $43,500,000.

In this example, an Offeror would provide the following:

Current Contract Expenditures incurred to Date: $43,500,000

Date in which Expenditures have been incurred through: Insert Date of cost report that indicated cost/fee total of $43,500,000 after 2 years and 4 months of performance.

Average Annual Cost/Fee Incurred to Date: $18,669,528 ($43,500,000/2.33 years)

- Date of contract, place(s) of performance, and delivery dates or period of performance.

- Brief description of contract work and comparability to the proposed effort. It is not sufficient to state that it is comparable in magnitude and scope. Rationale must be provided to demonstrate that it is comparable.

- Method of acquisition: competitive or noncompetitive.

- Nature of award: initial or follow-on. If initial, indicate whether award was preceded by a Government, customer, or Offeror financed study.

- Identify and explain major technical problems and how they were overcome. List any major deviations or waivers to technical requirements that were granted by the customer.

- Identify and explain completion successes and delays, including adherence to program schedules. Provide an assessment of the performance (technical and schedule) on these past programs and support these assessments with metrics such as award or incentive fees earned.

- Cost management history; identify and explain any cost overruns and underruns, and cost incentive history, if applicable.

- Average number of personnel on the contract per year and percent turnover of personnel per year.

- Recent customer evaluations of past performance including Award Fee Evaluation results, Fee Determination Official letters, Annual Performance Evaluation Forms, etc. (Excluded from the page limitation).

- List any contracts terminated (partial or complete) within the past 5 years and basis for termination (convenience or default). Include the contract number, name, address, and telephone number of the terminating officer (please verify telephone numbers). Include contracts that were "descoped" by the customer because of performance or cost problems. (Excluded from the page limitation).

(c) *PRIOR CUSTOMER EVALUATIONS (PAST PERFORMANCE QUESTIONNAIRES)*

The offeror and any proposed significant subcontractor(s) [as defined in paragraph (a)] shall provide the questionnaires provided as **Enclosure 3** to each of the above references to establish a record of past performance. The Offeror shall instruct each of its references to return the questionnaire directly to the Government Contracting Officer via email. The questionnaire respondent shall be a representative from the technical customer and responsible Contracting Officer with direct knowledge of your firm's performance. If possible, the Offeror and any proposed significant subcontractor(s) shall provide questionnaires to customers from NASA contracts, other Government contracts, and commercial contracts. For proposed significant subcontractor(s), references shall concern only work performed by the subcontractor's business entity that will perform the work under this contract, if awarded.

The Offeror is responsible for ensuring that the questionnaire is completed and submitted, via email to **chanda.m.cannon@nasa.gov** no later than the closing date of this solicitation designated in Block 9 of the SF 33.

The Offeror shall include a list of those to whom the questionnaires were sent, including name of individual, phone number, organization, and contract number. Offerors shall include in their proposal the written consent of their proposed significant subcontractors to allow the Government to discuss the subcontractors' past performance evaluation with the Offeror.

(End of provision)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

L.13 GSFC 52.233-2 GSFC MODIFICATION TO FAR 52.233-2 -- SERVICE OF PROTEST. (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Contracting Officer Email: Chanda.M.Cannon@nasa.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

L.14 ELECTRONIC SUBMISSION OF PROPOSALS – PROPOSAL MARKING AND DELIVERY THROUGH NASA'S EFSS BOX (NOV 2021)

(a) The offeror shall submit its proposal via NASA's Enterprise File Sharing and Sync Box (EFSS Box), a FedRAMP Moderate certified platform. Electronic submissions shall not contain hidden formulas, tables, be locked, be password protected, or contain links to data not included in the electronic copy. All electronic submissions should be searchable and should not contain scanned documents, except those documents that must be provided in their native format (e.g., signature pages, prior award fee letters for past performance, DCAA/DCMA approval letters, as applicable). The offeror shall ensure documents are free from viruses and malware, as documents determined by NASA to contain a virus or malware will not be opened or evaluated. Subcontractors may submit their required proposal information separately using the instructions in this provision. The offeror shall ensure subcontractor submissions are made no later than the date and time specified for proposal submission and comply with all solicitation instructions.

(b) Prior to the submission of proposal files, offerors interested in submitting a proposal in response to this solicitation should notify Andrew Fiedler of their intent to submit a proposal at least 48 hours prior to the intended submission date, at the following email address: Chanda.M.Cannon@nasa.gov. Offerors, especially those that have not previously submitted a proposal utilizing NASA's EFSS Box, are encouraged to coordinate the submission of a test file with Chanda Cannon several days in advance of the date and time specified for proposal submission in order to allow time to work through any submission issues.

(c) The offeror shall submit all proposal files to:

https://nasagov.app.box.com/f/704b4609ead64df98f32d3b408e415e6.

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

The Offeror shall follow instructions regarding proposal submission found at https://www.hq.nasa.gov/office/procurement/other/EFSS-Box-Offeror-Proposal-Submission-Instructions.pdf.

(d) Offerors are encouraged to include all individual proposal files within a single .zip file. Electronic file names shall be limited to letters, numbers, dashes, and single spaces, with the exception of the period that is required before the file extension (e.g., .zip, .pdf), in order to successfully upload and download files from the EFSS Box system. The offeror shall not use special characters "/" or "\" in file names. The offeror shall sequentially number each file and clearly label the contents of the file and include the name of the offeror and subcontractor name (if applicable) in the individual file name. Examples of acceptable individual file names are as follows (not specific to this solicitation):

For Prime Offeror Submissions:

1. Prime Offeror name - solicitation number - Quotation.docx

2. Prime Offeror name - solicitation number - Technical Volume.pdf

3. Prime Offeror name - solicitation number - Price Volume.xlsx

Individual files cannot exceed 150GB per file. Submitted files shall not include password protection. Unless specifically authorized by the solicitation instructions, alternate proposal submissions shall not be submitted.

(e) Immediately after all files have been uploaded and the proposal has been submitted in its entirety, the offeror shall notify Chanda Cannon at the following email address: Chanda.M.Cannon@nasa.gov with a listing of all documents by filename that were submitted via EFSS Box. If any problems are experienced with the EFSS Box system (e.g., login, file transfer), please contact Chanda Cannon via e-mail as soon as possible.

(a) The offeror is responsible for ensuring its proposal reaches the Government office designated in the solicitation by the date and time specified in the solicitation (see FAR 52.212-1(f) the Government is not responsible for any failure attributable to the transmission or receipt of documents submitted using electronic means, including the missing of any submission requirements and established deadlines. Please note that uploading documents via EFSS Box and the transmission of the files from the offeror to the Government may not be instantaneous. To ensure timely delivery, the offeror is encouraged to submit its proposal at least 24 hours prior to the due date specified in the solicitation. The electronic submission of the proposal shall contain all information required by the solicitation to be determined responsive.

(End of provision)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

L.15 NFS 1852.233-70 PROTESTS TO NASA. (SEP 2025)

(a) In lieu of a protest to the United States Government Accountability Office (GAO), bidders or offerors may submit a protest under 48 CFR Part 33 (FAR Part 33) directly to the contracting officer for consideration by the Agency. Alternatively, bidders or offerors may request an independent review by the Assistant Administrator for Procurement, who will serve as or designate the official responsible for conducting an independent review. Such reviews are separate and distinct from the Ombudsman Program.
(b) Bidders or offerors must specify whether they are submitting a protest to the contracting officer or requesting an independent review by the Assistant Administrator for Procurement.
(c) Protests to the contracting officer must be submitted to the address or email specified in the solicitation (email is an acceptable means for submitting a protest to the contracting officer). Alternatively, requests for independent review by the Assistant Administrator for Procurement must be addressed to the Assistant Administrator for Procurement, NASA Headquarters, Washington, D.C. 20546-0001.

(End of provision)

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 PROSPECTIVE CONTRACTOR RESPONSIBILITY AND ELIGIBILITY STANDARDS (OCT 2021)

(a) The procedures for determining whether prospective contractors and subcontractors are responsible are set forth in Federal Acquisition Regulation (FAR) Subpart 9.1 and NASA FAR Subpart 1809.1. Failure by the offeror to affirmatively demonstrate adequate compliance with the general standards of prospective contractor responsibility at FAR 9.104-1, and any special standards established for this acquisition under FAR 9.104-2, will result in a determination of non-responsibility. As with all aspects of prospective contractor responsibility, a finding of non-responsibility can be made at any time prior to contract award. Per FAR 9.103(b), if the prospective contractor is a small business concern, responsibility will be determined in accordance with Subpart 19.6, Certificates of Competency and Determinations of Responsibility. If the prospective contractor is a Section 8(a) participant, see Subpart 19.8.

(b) Additional requirements for eligibility have been established for this acquisition. The Government may communicate with offerors about the eligibility requirement(s) identified below outside of the evaluation process. This communication does not constitute discussions as defined in FAR 15.306. If the following eligibility requirements cannot be made acceptable to the Government, the offeror will be considered ineligible for award:

(1) Organizational Conflict of Interest (OCI) Plan in accordance with the Notice of Potential Organizational Conflicts of Interest in Section L and FAR 9.504. The proposed OCI plan shall be consistent with all other areas of the proposal. Material inconsistencies between the plan and other proposal areas may render the proposal invalid, resulting in an unacceptable proposal that is ineligible for award.

(End of text)

M.2 GSFC 52.215-300 SOURCE SELECTION AND EVALUATION FACTORS - GENERAL. (SEP 2019)

(a) Source Selection

This competitive negotiated acquisition shall be conducted in accordance with FAR 15.3, "Source Selection", and NASA FAR Supplement (NFS) 1815.3, same subject. The Source Evaluation Board procedures at NFS 1815.370, "NASA Source Evaluation Boards" will apply.

The attention of offerors is particularly directed to NFS 1815.305, "Proposal evaluation" and to NFS 1815.305-70, "Identification of unacceptable proposals".

A trade-off process, as described at FAR 15.101-1, will be used in making source selection.

(b) Evaluation Factors and Subfactors

SECTION M - EVALUATION FACTORS FOR AWARD

The evaluation factors are Mission Suitability, Cost, and Past Performance. These factors, as described at NFS 1815.304-70, will be used to evaluate each proposal. This Section M provides a further description for each evaluation factor, inclusive of subfactors. Only the Mission Suitability factor is numerically scored.

(c) Relative Order of Importance of Evaluation Factors

The Cost Factor is significantly less important than the combined importance of the Mission Suitability Factor and the Past Performance Factor. As individual factors, the Mission Suitability Factor is more important than the Past Performance Factor which is more important than the Cost Factor.

(End of provision)

M.3 GSFC 52.215-311 MISSION SUITABILITY EVALUATION FACTOR. (MAY 2022)

(a) In accordance with FAR Subpart 15.3 and NFS Subpart 1815.3, the Government will evaluate the offeror's demonstrated understanding of the Mission Suitability subfactor requirements and approach for accomplishing those requirements, the appropriateness of the offeror's proposed resources, and associated programmatic risk. A lack of resource realism may adversely affect the offeror's Mission Suitability evaluation and result in cost realism adjustments under the Cost factor. The Government will validate the consistency between all proposal volumes and any inconsistencies identified may indicate a lack of understanding and adversely impact the offeror's adjectival rating(s) and score. Only that information provided within the proposal will be evaluated; any reference to previously submitted information, if any, will be considered only to the extent the information is resubmitted as part of the proposal. Information incorporated by reference will not be considered or evaluated.

The Government may choose to incorporate any positive aspects of an Offeror's approach to meeting/exceeding contract requirements into the final contract, particularly if any positive proposal area results in Strength or Significant Strength findings in the Mission Suitability evaluation. An Offeror's proposed Mission Suitability approach shall be consistent with its proposed cost/price information.

Subfactor A – Technical Approach (RTO 1 & 2)

A.1 Risk Identification and Management

NASA will evaluate the Offeror's proposed risk identification and management approach, including all areas and information specified in section L.10, Subfactor A, Paragraph A.1, for effectiveness, reasonableness, and efficiency.

A.2 RTO Task Plans

NASA will evaluate the Offeror's RTO task plans approach, including all areas and information specified in section L.10, Subfactor A, Paragraph A.2, for effectiveness, reasonableness, and efficiency.

Subfactor B – Management Approach

B.1 Overall Management Approach

NASA will evaluate the Offeror's proposed overall management approach, including all areas and information specified in section L.10, Subfactor B, Paragraph B.1, for effectiveness, reasonableness, and efficiency.

B.2 Significant Subcontractors

NASA will evaluate the Offeror's proposed significant subcontractors, including all areas and information specified in section L.10, Subfactor B, Paragraph B.2, for effectiveness, reasonableness, and efficiency.

B.3 Management Structure

NASA will evaluate the Offeror's proposed management structure, including all areas and information specified in section L.10, Subfactor B, Paragraph B.3, for effectiveness, reasonableness, and efficiency.

B.4 Program Manager

NASA will evaluate the Offerors proposed program manager approach, including all areas and information specified in section L.10, Subfactor B, Paragraph B.4, for reasonableness and effectiveness.

B.5 Phase-in Plan

NASA will evaluate the Offeror's phase-in plan approach, including all areas and information specified in section L.10, Subfactor B, Paragraph B.5, for effectiveness, reasonableness, and efficiency.

B.6 Staffing

NASA will evaluate the Offeror's proposed staffing approach, including all areas and information specified in section L.10, Subfactor B, Paragraph B.6 for effectiveness, reasonableness, and efficiency.

B.7 Task Order Management

NASA will evaluate the Offeror's task order management approach, including all areas and information specified in section L.10, Subfactor B, Paragraph B.7, for effectiveness, reasonableness, and efficiency.

B.8 Position Qualifications

NASA will evaluate the Offeror's proposed Position Qualifications, including all areas and information specified in section L.10, Subfactor B, Paragraph B.8, for reasonableness, effectiveness, and efficiency.

B.9 Total Compensation Plan

NASA will evaluate the Offeror's proposed Total Compensation Plan, including all areas and information specified in section L.10, Subfactor B, Paragraph B.9, for realism, adequacy, reasonableness and effectiveness in accordance with FAR 52.222-46. The evaluation criteria described in FAR 52.222-46 for professional employees will be applied to all labor categories (including those personnel subject to union agreements, the Service Contract Act, and those exempt from both) in evaluating the total compensation proposed. Professional compensation that is unrealistically low or not in reasonable relationship to the various job categories, may adversely impact the offeror's Mission Suitability evaluation or may result in rejection of the proposal.

Subfactor C – IT Requirements Analysis (RTO 3)

C.1 RTO 3 Staffing

NASA will evaluate the Offeror's proposed RTO 3 staffing approach, including all areas and information specified in section L.10, Subfactor C, Paragraph C.1, for effectiveness, reasonableness, and efficiency.

C.2 RTO 3 Risks

NASA will evaluate the Offeror's proposed RTO 3 risks, including all areas and information specified in section L.10, Subfactor C, Paragraph C.2, for effectiveness, reasonableness, and efficiency.

C.3 Managing/Migration of Legacy System Data

NASA will evaluate the Offeror's proposed approach to managing/migration of legacy system data, including all areas and information specified in section L.10, Subfactor C, Paragraph C.3, for compliance, effectiveness, reasonableness, and efficiency.

C.4 IT Support for Panelist

NASA will evaluate the Offeror's proposed IT support for panelist approach, including all areas and information specified in section L.10, Subfactor C, Paragraph C.4, for effectiveness, reasonableness, and efficiency.

(b) In accordance with NFS 1815.304-70(b)(1), subfactors will be numerically weighted and scored in accordance with the 1,000-point scale provided below.

Subfactor	Points
Subfactor A: Technical Approach (RTO 1 and RTO 2)	400
Subfactor B: Management Approach	400
Subfactor C: IT Requirements Analysis (RTO 3)	200
Total	1,000

(c) In accordance with FAR 15.001, weaknesses, significant weaknesses, and deficiencies will be assessed based on the following definitions:

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Additionally, strengths and significant strengths will be assessed based on the following definitions:

Strength is an aspect of the proposal that will have some positive impact on the successful performance of the contract.

Significant strength is some aspect of the proposal that greatly enhances the potential for successful contract performance.

(d) The Government will assign adjectival ratings and numerical scores for each subfactor using the adjectival ratings, definitions, and percentile ranges set forth at NFS 1815.305(a)(3)(A).

(e) The Government will establish a total Mission Suitability factor numerical score by adding all of the subfactor points assessed. A summary adjectival rating will not be assigned for this factor.

(End of provision)

M.4 GSFC 52.215-323 COST EVALUATION FACTOR (IDIQ SERVICES - GPM). (JUN 2014)

A price analysis will be conducted by evaluating the prices proposed in response to this solicitation (FAR 15.404-1(b)).

Cost realism will be evaluated in accordance with FAR 15.404-1(d) at the overall proposed cost/price level. The Government will conduct a cost realism analysis by independently reviewing and evaluating the Offeror's proposed cost/price, by element, to determine whether the estimated proposed costs/prices are realistic for the work to be performed; reflect a clear understanding of the requirements; and are consistent with the Offeror's technical proposal. The Government will derive a probable cost, which is determined by adjusting each Offeror's proposed cost/price, and fee when appropriate, to reflect any additions or reductions in cost/price elements to realistic levels based on the results of the Government's Cost Realism Analysis. The probable cost may differ from the proposed cost/price and will reflect the Government's best estimate of the Offeror's proposal. The probable cost will be used for the purposes of evaluation to determine the best value.

Both the "proposed and probable cost" will typically reflect the Offeror's proposed fee amount. Proposed fee will be corrected to resolve mathematical errors, if any. Proposed fee will not be adjusted as a result of any cost realism adjustments to establish probable cost.

The total FFP Phase-In price and the proposed and probable Government Pricing Model evaluated cost (including proposed fee amount) will be presented to the Source Selection Authority as well as any cost risk associated with the proposal.

The proposed costs of the Government Pricing Model and the rates proposed in Attachment B, **DIRECT LABOR RATES, INDIRECT RATES AND FEE MATRICES**, will be assessed to determine reasonableness and cost realism. The cost evaluation will be conducted in accordance with FAR 15.305(a)(1) and NFS 1815.305(a)(1)(B). Offerors should refer to FAR 2.101(b) for a definition of "cost realism" and to FAR 15.404-1(d) for a discussion of "cost realism analysis" and "probable cost".

(End of provision)

M.5 GSFC 52.215-330 PAST PERFORMANCE EVALUATION FACTOR (SERVICES). (FEB 2025)

An offeror's past performance will be evaluated based on FAR Part 15 and the evaluation criteria in this provision. All past performance references must meet the "recent" and minimum average annual cost/fee expenditures criteria provided below for both prime contractor references and significant subcontractor references in order to be evaluated.

For purposes of past performance, the term "Offeror" refers to a prime contractor and its significant subcontractors. Accordingly, the past performance of significant(s) subcontractors

shall also be evaluated and attributed to the Offeror. The past performance of a significant subcontractor will be compared to the work proposed to be performed by that subcontractor and weighted accordingly in assigning the overall past performance adjectival rating to the Offeror. The past performance of the prime contractor will be weighted more heavily than any significant subcontractor or combination of significant subcontractors in the overall past performance evaluation.

A "recent" contract is a contract that is ongoing or completed less than 5 years prior to the issuance of this RFP. Contracts completed more than 5 years prior to issuance of this RFP will not be considered recent and will not be considered or evaluated.

A "relevant" contract depends on the size and content of the contract with respect to this acquisition.

For a prime contractor's contract reference(s) to be considered at least minimally "relevant", it must meet/exceed an average annual cost/fee incurred of at least $7M.

A proposed significant subcontractor for this procurement is defined as any proposed subcontractor that is estimated to meet/exceed an average annual cost/fee of $7M. Note, the definition of significant subcontractor for the past performance evaluation may be different than for the cost evaluation.

For a significant subcontractor's contract reference(s) to be considered at least minimally "relevant", it must meet/exceed an average annual cost/fee incurred of at least 10% of that portion of this procurement that the subcontractor is proposed (or estimated) to perform.

If the contract is deemed recent and meets the above minimum average annual cost/fee expenditures criteria for size, the Government will then determine the degree of relevance - i.e., level of pertinence - of the contract based on content. Size will not be further evaluated beyond the minimum requirement. The term "content" means the type and complexity of services, work, or supplies, in comparison to the requirements of this solicitation. The Government may consider past quantities and periods of performance in evaluating overall relevance.

The performance evaluation will be based primarily on customer satisfaction and/or contract data in meeting technical, schedule, cost, and management requirements. Additional performance factors may include contract administration, occupational health, safety, security, subcontracting plan goals and small disadvantaged business participation targets, if applicable, and other contract requirements.

The Government may review and consider past performance information on other contracts that it is aware of or that are made available from other sources and inquiries with previous customers. These contracts (if any) must meet the above "recent" and minimum average annual cost/fee expenditures criteria to be evaluated.

As part of the past performance evaluation, the Government may attribute the experience or past performance of a parent or affiliated or predecessor company (including Joint Venture prime partner companies and/or a parent or affiliated company that is being otherwise proposed as a subcontractor on this effort) to the proposed prime contractor and/or significant subcontractor(s) where the proposal demonstrates that the resources of the parent or affiliate or predecessor company will affect the performance of the proposed prime contractor and/or significant subcontractor(s). The Government will take into consideration whether the resources of the parent or affiliate or predecessor company (its workforce, management, facilities or other resources) will be provided or relied upon for contract performance such that the parent or affiliate will have meaningful involvement in contract performance. These contracts (if any) must meet the above "recent" and minimum average annual cost/fee expenditures criteria to be evaluated.

Offerors proposing as a joint venture will be evaluated on the past contracts performed by the joint venture and/or its prime joint venture partners. Joint Venture mentor/protégé proposals will evaluate the protégé partner as a significant subcontractor.

An Offeror shall not be rated favorably or unfavorably if the offeror does not have a record of "recent" and "relevant" past performance or if a record of past performance is unavailable. In such cases the offeror will receive a "Neutral" rating. However, an offeror with favorable, recent, and relevant past performance that meets the minimum average annual cost/fee expenditures indicated above may be considered more favorably than an offeror with no relevant past performance information.

The Government will consider an Offeror's explanation of any problems encountered on any identified contracts, and any corrective actions taken by the offeror.

The overall confidence rating assigned to an Offeror's Past Performance (see below) will reflect a subjective evaluation of the information contained in the oral presentation, if applicable; written narrative; past performance evaluation input provided through customer questionnaires; and other references, if any, that the Government may contact for additional past performance information.

<u>Past Performance Ratings</u> – The level of confidence ratings set forth below will be used to evaluate the Past Performance factor for each Offeror.
Each of the adjective ratings below has a "performance" component and a "relevance" component as discussed above. The following adjectival rating guidelines will be used when subjectively assessing both components.

<u>Very High Level of Confidence</u>
The Offeror's relevant past performance is of exceptional merit and is very highly relevant to this acquisition; indicating exemplary performance in a timely, efficient, and economical manner; very minor (if any) problems with no adverse effect on overall performance. Based on the Offeror's performance record, there is a very high level of confidence that the Offeror will successfully perform the required effort.

High Level of Confidence
The Offeror's relevant past performance is highly Relevant to this acquisition; demonstrating very effective performance that would be fully responsive to contract requirements with contract requirements accomplished in a timely, efficient, and economical manner for the most part with only minor problems with little identifiable effect on overall performance. Based on the Offeror's performance record, there is a high level of confidence that the Offeror will successfully perform the required effort.

Moderate Level of Confidence
The Offeror's relevant past performance is Relevant to this acquisition, and it demonstrates effective performance; fully responsive to contract requirements; reportable problems, but with little identifiable effect on overall performance. Based on the Offeror's performance record, there is a moderate level of confidence that the Offeror will successfully perform the required effort.

Low Level of Confidence
The Offeror's relevant past performance is at least somewhat relevant to this acquisition, and it meets or slightly exceeds minimum acceptable standards; adequate results; reportable problems with identifiable, but not substantial, effects on overall performance. Based on the Offeror's performance record, there is a low level of confidence that the Offeror will successfully perform the required effort. Changes to the Offeror's existing processes may be necessary in order to achieve contract requirements.

Very Low Level of Confidence
The Offeror's relevant past performance does not meet minimum acceptable standards in one or more areas; remedial action required in one or more areas; problems in one or more areas which adversely affect overall performance. Based on the Offeror's performance record, there is a very low level of confidence that the Offeror will successfully perform the required effort.

Neutral
In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance [see FAR 15.305(a) (2) (ii) and (iv)].

(End of provision)